

BEFORE THE
FEDERAL MARITIME COMMISSION

WASHINGTON, DC 20573

DOCKET NO. 22-20

MSRF, Inc. v. HMM Company Limited

COMPLAINANT, MSRF, INC.'s REVISED APPENDIX
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Public Version

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EXHIBIT 1

DECLARATION

Before the
FEDERAL MARITIME COMMISSION
Washington, DC 20573
Docket No. 22-20
MSRF Inc. v. HMM Company Ltd.

**DECLARATION OF DAVID REICH IN SUPPORT OF
MOTION FOR SUMMARY DECISION**

DAVID REICH, hereby declares as follows:

1. I am the president, founder and majority shareholder for MSRF Inc. (“MSRF”), the Petitioner in the above-referenced action.
2. I have personal knowledge of the facts set forth herein, and am fully familiar with the proceedings in this case.
3. I submit this Declaration in support of MSRF’s Motion for Summary Decision.
4. MSRF and Respondent HMM entered into a service contract (SC US2124083) effective May 1, 2021. A true and correct copy of the service contract is attached hereto as **Group Exhibit A**.
5. When executed, the duration of the service contract was from May 1, 2021 through April 30, 2022. Group Ex. A, ¶ 8.
6. The service contract was kept in the ordinary and normal course of business and was agreed to and executed by both MSRF and HMM. Group Ex. A. I personally executed the contracts on behalf of MSRF.
7. The service contract was amended on fourteen occasions. Group Ex. A. Many of the amendments simply added different routes to the parties’ agreement.

8. The service contract provided for a minimum quantity commitment of [REDACTED] forty equivalent units (“FEUs”) from Asia to the U.S. during the initial contract period of May 1, 2021, through April 30, 2022. Group Ex. A, amendment 7. The service contract also identified the prices to be charged for various routes, including the prices for the FEUs.

9. After the negotiation of the initial contract, in July 2021, MSRF and Respondent negotiated an amendment for a peak season surcharge on the pricing for shipments through the end of August. A true and correct email chain from July 9, 2021 is attached as **Exhibit B**. As part of these negotiations, Respondent required MSRF to provide a forecast of shipments through August 2021. See Exhibit B MSRF Document Production Bates Numbers MSRF_HMM_0003717-3718. The forecast was for 28 containers.

10. HMM agreed to provide [REDACTED] FEUs per week through the end of August 2021 at the set price of [REDACTED]. Ex. B. This was an increase from the initial contract because of a peak season surcharge.

11. The peak season surcharge based on these negotiations was adopted in amendment 7 to the service contract, Group Ex. A, Amendment 7. The execution of this amendment was based upon MSRF’s agreement to provide [REDACTED] FEUs per week until August 31, 2021.

12. MSRF would not have agreed to this surcharge if it was not going to receive [REDACTED] FEUs per week through August 31, 2021.

13. I am familiar with the email chain identified as Exhibit B as it was kept in the ordinary course of MSRF’s business.

14. Respondent provided only [REDACTED] containers through August 31, 2021. See **Exhibit C**, Marisol Deposition Exhibit M7. See also Group Ex. A, amendment 12, reflecting that the amount of FEUs provided was only [REDACTED] containers

15. MSRF suffered further damages through HMM's refusal to provide space when requested by MSRF. The documents produced in discovery are replete with examples of this refusal to deal. For example, in email correspondence between MSRF and HMM requesting bookings from Kolkata, India to Montreal, Canada, HMM refused to provide space. HMM Discovery Production to MSRF Bates Nos HMM0011027-0011036 attached hereto as **Exhibit D** and MSRF Bates Nos. HMM0010738-0010742 attached as **Exhibit E**. The emails were kept in the ordinary and normal course of business and I am familiar with these documents based upon a few of MSRF's business records.

16. I am familiar with the damages worksheet produced by MSRF to HMM, which is attached hereto as **Exhibit F**. This worksheet is based on business records maintained by MSRF in its normal course of business.

17. My understanding is that the underlying documents supporting the damages worksheet were produced in discovery to HMM and the worksheet has reference to the specific bates-numbers for the underlying business records.

18. The damages worksheet lists each shipment of goods by MSRF on which it paid freight costs in excess of those agreed by HMM in the service contract.

19. The damages worksheet also contains the costs related to shipments which were originally booked for movement from the port of lading to an inland destination in the United States, but the movement was terminated at the port of unloading because HMM was unable to provide rail movement to the original destination. These additional costs are for transloading and trucking charges which would not have been incurred if HMM had provided the necessary container space on its vessels as agreed to by HMM

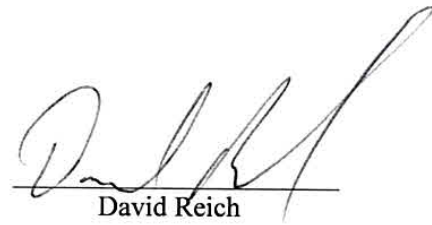
20. The total damages are [REDACTED] on a total of [REDACTED] FEUs. This is an average of [REDACTED] per FEU.

21. HMM provided MSRF with only [REDACTED] FEUs during the initial contract period.

22. As a result, MSRF's damages are calculated by taking [REDACTED] (which is the average additional charges per FEU) and multiplying by [REDACTED] (which is the amount of FEUs HMM did not provide during the term). As a result, the damages sought by MSRF is [REDACTED].

I declare that the foregoing is true and correct to the best of my knowledge and belief.

Dated: April 20, 2023



David Reich

GROUP EXHIBIT A SERVICE CONTRACT

GROUP EXHIBIT B

To: Rochi Mirasol[rmirasol@msrf.com]; Laura Trometer[Laura.Trometer@hmm21.com]
From: Chris McDonald[Chris.McDonald@hmm21.com]
Sent: Fri 7/9/2021 2:59:56 AM (UTC)
Subject: RE: Qingdao Giftpackers to Chicago

Good Day Rochi,
After much pushing I was finally able to get an answer regarding your request below. Import Pricing has confirmed with overseas that they can offer PEK pricing as follows:

This is in place of the other PEK that just expired on [REDACTED] and the above would be in place until the end of [REDACTED]
Please confirm if you would like to add this PEK into you contract.

Thank you.

Kindest Regards,
Chris

Christopher McDonald
Account Executive – Chicago/St Louis

HMM (America) Inc.

25 Northwest Point, Suite 675; Elk Grove Village, IL 60007

Mobile: 224-383-4144

Chris.McDonald@hmm21.com

www.hmm21.com



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<http://www.hmm21.com/cms/business/usa/information/newsletter/index.jsp>

From: Chris McDonald

Sent: Wednesday, June 30, 2021 4:44 PM

To: 'Rochi Mirasol' <rmirasol@msrf.com>; Laura Trometer <Laura.Trometer@hmm21.com>

Subject: RE: Qingdao Giftpackers to Chicago

Rochi,

Sending to Qingdao for review and will advise feedback when received in reply. Thank you.

Kindest Regards,

Chris

Christopher McDonald
Account Executive – Chicago/St Louis

HMM (America) Inc.

25 Northwest Point, Suite 675; Elk Grove Village, IL 60007

Mobile: 224-383-4144

Chris.McDonald@hmm21.com

www.hmm21.com



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From: Rochi Mirasol [<mailto:rmirasol@msrf.com>]

Sent: Tuesday, June 29, 2021 11:46 AM

To: Chris McDonald <Chris.McDonald@hmm21.com>; Laura Trometer <Laura.Trometer@hmm21.com>

Subject: FW: Qingdao Giftpackers to Chicago

Chris,

Please see below forecast and advise how many container you can get release each week base on the list.

Hi Rochi,

Please see below. We will have roughly about 28x40'HC containers going to Chicago area. Wish this would be helpful for you to get the better rates.

CONFIDENTIAL

MSRF_HMM_0003717

CX_0203

1. Container size	2. Total # of container	3. Ready Date	4. Booking Status	5. Sailing Date	6. Final Destination	7. Port
40HC	■	Before end July	No Booking	2021/7/29	ITASCA,IL	CH
40HC	■	End of July	No Booking	2021/8/5	ITASCA,IL	
40HC	■	Early Aug	No Booking	2021/8/19	ITASCA,IL	
40HC	■	Mid/End of Aug	No Booking	2021/8/26	ITASCA,IL	
40HC	■	Early Sep	No Booking	2021/9/16	ITASCA,IL	
40HC	■	End of July	No Booking	2021/7/29	ALSIP,IL	
40HC	■	Early Aug	No Booking	2021/8/19	ALSIP,IL	
40HC	■	Early Sep	No Booking	2021/9/16	ALSIP,IL	

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Group Exhibit C

Marisol Deposition

Exhibit M-7

Exhibit D

HMM0011027 - 0011036

To: Rochi Mirasol[rmirasol@msrf.com]; Laura Trometer[Laura.Trometer@hmm21.com]
From: Chris McDonald[Chris.McDonald@hmm21.com]
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Subject: RE: Qingdao Giftpackers to Chicago

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After much pushing I was finally able to get an answer regarding your request below. Import Pricing has confirmed with overseas that they can offer PEK pricing as follows:

This is in place of the other PEK that just expired on [REDACTED] and the above would be in place until the end of [REDACTED]
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Thank you.

Kindest Regards,
Chris

Christopher McDonald
Account Executive – Chicago/St Louis

HMM (America) Inc.

25 Northwest Point, Suite 675; Elk Grove Village, IL 60007

Mobile: 224-383-4144

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Sent: Wednesday, June 30, 2021 4:44 PM

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From: Rochi Mirasol [<mailto:rmirasol@msrf.com>]

Sent: Tuesday, June 29, 2021 11:46 AM

To: Chris McDonald <Chris.McDonald@hmm21.com>; Laura Trometer <Laura.Trometer@hmm21.com>

Subject: FW: Qingdao Giftpackers to Chicago

Chris,

Please see below forecast and advise how many container you can get release each week based on the list.

Hi Rochi,

Please see below. We will have roughly about 28x40'HC containers going to Chicago area. Wish this would be helpful for you to get the better rates.

CONFIDENTIAL

MSRF_HMM_0003717

CX_0237

1. Container size	2. Total # of container	3. Ready Date	4. Booking Status	5. Sailing Date	6. Final Destination	7. Port
40HC	████	Before end July	No Booking	2021/7/29	ITASCA,IL	CH
40HC	████	End of July	No Booking	2021/8/5	ITASCA,IL	
40HC	████	Early Aug	No Booking	2021/8/19	ITASCA,IL	
40HC	██	Mid/End of Aug	No Booking	2021/8/26	ITASCA,IL	
40HC	████	Early Sep	No Booking	2021/9/16	ITASCA,IL	
40HC	████	End of July	No Booking	2021/7/29	ALSIP,IL	
40HC	████	Early Aug	No Booking	2021/8/19	ALSIP,IL	
40HC	██	Early Sep	No Booking	2021/9/16	ALSIP,IL	

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Exhibit E –HMM Production

From: Laura Trometer [Laura.Trometer@hmm21.com]
Sent: 7/19/2021 8:01:58 PM
To: Rochi Mirasol [rmirasol@msrf.com]
CC: Chris McDonald [Chris.McDonald@hmm21.com]
Subject: RE: HMM Import activity

Rochi ,

I will send inquiry and follow up with you tomorrow.

Thank you

Laura M. Trometer
Representative

Agent of HMM Co., Ltd. in USA

25 Northwest Pointe, Suite 675, Elk Grove Village, IL 60007

Office: 847.758.3700 / Direct 847-758-3728

Customer Service: 877.7HYUNDAI

Laura.Trometer@hmm21.com

www.hmm21.com



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Dallas Regional Customer Service Center Main Numbers: 877-7-Hyundai (877-749-8632) or 469-522-4700

Outbound Export Customer Service Inquiries & bookings: MWEXPORT@HMM21.COM or go to www.hmm21.com and request booking on line (E booking) ebooking@hmm21.com

Please take the time to sign yourself up for the e-Newsletter (Wheelhouse) by clicking ,
<http://www.hmm21.com/cms/business/usa/information/newsletter/index.jsp>
if you haven't done so already. Thank you!

All Freight Cashier issues:

Dallas Regional Customer Service Center at 469-522-4700_

Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

From: Rochi Mirasol [mailto:rmirasol@msrf.com]
Sent: Monday, July 19, 2021 1:50 PM
To: Laura Trometer <Laura.Trometer@hmm21.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: RE: HMM Import activity

Qingdao Giftpackers and Weifang Kaimax

Rochi Mirasol

HMM0010738

CX_0240

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Laura Trometer <Laura.Trometer@hmm21.com>
Sent: Monday, July 19, 2021 8:15 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: RE: HMM Import activity

Good Morning Rochi ,

You have contracted PEK out of Qingdao thru [REDACTED]
HMM Qingdao should be honoring this.

Can you provide me any details on HMM rejection of vessel space out of Qingdao ?
Would your shipper have email back from HMM rejecting space ?
Who is your shipper attempting to make bookings out of Qingdao ?

Once I receive your reply I can report to upper Management .

Thank you ,

Laura M. Trometer
Representative

Agent of HMM Co., Ltd. in USA

25 Northwest Pointe, Suite 675, Elk Grove Village, IL 60007

Office: 847.758.3700 / Direct 847-758-3728

Customer Service: 877.7HYUNDAI

Laura.Trometer@hmm21.com

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Please take the time to sign yourself up for the e-Newsletter (Wheelhouse) by clicking ,
<http://www.hmm21.com/cms/business/usa/information/newsletter/index.jsp>
if you haven't done so already. Thank you!

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Dallas Regional Customer Service Center at 469-522-4700

Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

HMM0010739

CX_0241

From: Rochi Mirasol [<mailto:rmirasol@msrf.com>]
Sent: Saturday, July 17, 2021 2:51 PM
To: Laura Trometer <Laura.Trometer@hmm21.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: RE: HMM Import activity

We are still have a problem getting a space

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

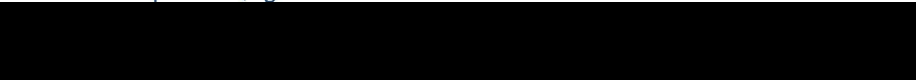
From: Laura Trometer <Laura.Trometer@hmm21.com>
Sent: Friday, July 16, 2021 11:42 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Chris McDonald <Chris.McDonald@hmm21.com>
Subject: HMM Import activity

Rochi ,, good day to you and happy Friday ,

Please know that the below shipment is the only thing I show moving under your HMM Contract.
Please advise if your shippers overseas have experienced and problems securing vessel space out of Qingdao.



Vessel Just departed Qingdao .



Thank you

Laura M. Trometer
Representative
Agent of HMM Co., Ltd. in USA
25 Northwest Pointe, Suite 675, Elk Grove Village, IL 60007
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HMM0010740

CX_0242

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Dallas Regional Customer Service Center at 469-522-4700.

Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

From: Laura Trometer

Sent: Tuesday, June 29, 2021 2:59 PM

To: 'Rochi Mirasol' <rmirasol@msrf.com>; Chris McDonald <Chris.McDonald@hmm21.com>

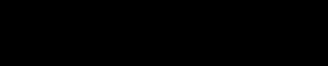
Subject: RE: Xiamen

Rochi ,

I see only one shipment out of Qingdao under your contract.



Vessel Just departed Qingdao .



Thank you

Laura M. Trometer

Representative

Agent of HMM Co., Ltd. in USA

25 Northwest Pointe, Suite 675, Elk Grove Village, IL 60007

Office: 847.758.3700 / Direct 847-758-3728

Customer Service: 877.7HYUNDAI

Laura.Trometer@hmm21.com

www.hmm21.com



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All Freight Cashier issues:

Dallas Regional Customer Service Center at 469-522-4700.

Or Via mail: Import: DALFCIMPORT@HMM21.COM and Export: DALFCEXPORT@HMM21.COM

HMM0010741

CX_0243

From: Rochi Mirasol [<mailto:rmirasol@msrf.com>]

Sent: Tuesday, June 29, 2021 2:50 PM

To: Chris McDonald <Chris.McDonald@hmm21.com>; Laura Trometer <Laura.Trometer@hmm21.com>

Subject: FW: Xiamen

Did you see any booking out of Xiamen to Chicago?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

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HMM0010742

CX_0244

EXHIBIT F DAMAGES CALCULATION

Vendor	No. of Overcharged Containers	Charges > SC Rate	Transload Charges	Chassis Charges
Total				
Grand Total				\$

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
30	001001-0010004		10-May-21	Qingdao, China		TCLU8934429	1 x 40'HQ	62.50	23-Jun-21	Norfolk, VA	30-Jun-21		7002499		4,662	389	12
42	0010005-0010009		20-Jun-21	Qingdao, China		HLBU2073952	1 x 40'HQ	68.13	12-Jul-21	Vancouver, Canada	27-Jul-21		70024997		15,840	440	36
43	0010010-0010012		21-Jun-21	Qingdao, China		TCNU1282007	1 x 40'HQ	68.13	10-Jul-21	Prince Rupert, Canada	27-Jul-21		70024997		15,840	440	36
44	0010013-0010016		8-Jul-21	Qingdao, China		TRHU7800750	1 x 40'HQ	66.10	27-Jul-21	Vancouver, Canada	07-Aug-21		70024997		17,460	194	90
46	0010017-0010021		4-Jul-21	Qingdao, China		FFAU2005299	1 x 40'HQ	69.00	31-Jul-21	Long Beach, CA	16-Aug-21		70024977		30,420	338	90
47	0010022-0010025		4-Jul-21	Qingdao, China		TCLU4293688	1 x 40'	54.80	24-Jul-21	Oakland, CA	13-Aug-21		70024980		10,080	1,680	6
48	0010026-0010029		6-Jul-21	Qingdao, China		CAIU4804210	1 x 40'HQ	65.10	25-Jul-21	Long Beach, CA	18-Aug-21		70025015		3,804	634	6
49	0010030-0010034		11-Jul-21	Qingdao, China		TCNU4124617	1 x 40'HQ	63.80	7-Aug-21	Vancouver, Canada	20-Aug-21		70024980		1,200	200	6

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
52	0010035-0010040		11-Jul-21	Qingdao, China		MSDU9844912	1 x 40'RQ	52.60	29-Jul-21	Long Beach, CA	11-Aug-21		70025268		1,098	183	6
53			11-Jul-21	Qingdao, China		YMLU8952958	1 x 40'HQ	63.90	29-Jul-21	Tacoma, WA	11-Aug-21		70024980		11,760	1,960	6
55	0010041-0010045		15-Jul-21	Qingdao, China		SEGU6687892	1 x 40'HQ	63.90	2-Aug-21	Los Angeles, CA	17-Aug-21		70024980		11,760	1,960	6
56	0010044-0010045		15-Jul-21	Qingdao, China		OOLU9265688	1 x 40'HQ	63.90	2-Aug-21	Los Angeles, CA	17-Aug-21		70024980		11,760	1,960	6
57	0010046-0010050		15-Jul-21	Qingdao, China		GAOU6491176	1 x 40'HQ	63.90	2-Aug-21	Los Angeles, CA	17-Aug-21		70024980		11,760	1,960	6
58	0010051-0010053		15-Jul-21	Qingdao, China		GAOU6491242	1 x 40'HQ	63.90	2-Aug-21	Los Angeles, CA	17-Aug-21		70024980		11,760	1,960	6
61	0010054-0010056		24-Jul-21	Qingdao, China		BEAU6150134	1 x 40'HQ	64.40	15-Aug-21	Los Angeles, CA	29-Aug-21		70025022 92014016		4,080	680	6
62	0010057-0010059		18-Jul-21	Qingdao, China		TGBU8039848	1 x 40'HQ	21.80	20-Aug-21	New York, NY	25-Aug-21		70025022 92014014		2,778	463	6

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
63	0010060-0010063		20-Jul-21	Qingdao, China		TRHU4895407	1 x 40'HQ	20.70	14-Aug-21	Los Angeles, CA	24-Aug-21		70025022 92014013		1,800	300	6
64	0010064		19-Jul-21	Qingdao, China		TLLU4206594	1 x 40'HQ	63.90	3-Aug-21	Los Angeles, CA	13-Aug-21		70024980		11,760	1,960	6
65	0010065-0010067		19-Jul-21	Qingdao, China		CAAU5170797	1 x 40'HQ	64.60	3-Aug-21	Los Angeles, CA	13-Aug-21		70025056		186	31	6
66	0010068-0010070		23-Jul-21	Qingdao, China		CICU2257437	1 x 40'HQ	18.90	12-Aug-21	Los Angeles, CA	25-Aug-21		70025022 92014015		1,542	257	6
67	0010070-0010073		3-Aug-21	Qingdao, China		TLLU5563662	1 x 40'HQ	66.70	20-Aug-21	Los Angeles, CA	29-Aug-21		70025354		1,308	218	6
73	0010074-0010077		26-Jul-21	Qingdao, China		OOCU8002633	1 x 40'HQ	65.20	27-Aug-21	New York, NY	11-Sep-21		70025022 92014014		3,840	640	6
74	0010078-0010079		29-Jul-21	Qingdao, China		FFAU1494338	1 x 40'HQ	24.700	15-Sep-21	Houston, TX	15-Sep-21		70025053 428575		2,400	400	6
76	0010080-0010082		1-Aug-21	Qingdao, China		CAIU7695004	1 x 40'HQ	18.90	25-Aug-21	Los Angeles, CA	25-Aug-21		70025022 92013993		4,284	357	12

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
79	0010083-0010086		1-Aug-21	Qingdao, China		TCNU7458496	1 x 40'HQ	68.00	25-Aug-21	Los Angeles, CA	05-Sep-21		70024979		11,400	1,900	6
80	0010087-0010089		1-Aug-21	Qingdao, China		BSIU9507694	1 x 40'HQ	66.50	27-Aug-21	Savannah, GA	03-Sep-21		70025086 637467		14,400	2,400	6
81	0010090-0010092		1-Aug-21	Qingdao, China		TGBU7092540	1 x 40'HQ	49.30	25-Aug-21	Los Angeles, CA	03-Sep-21		70025022 92013993		2,700	450	6
82	0010093-0010097		3-Aug-21	Qingdao, China		TRHU4179608	1 x 40'HQ	63.20	24-Aug-21	Los Angeles, CA	03-Sep-21		70025286		3,582	597	6
83	0010098-0010101		31-Jul-21	Qingdao, China		FSCU8565240	1 x 40'HQ	19.20	25-Aug-21	Los Angeles, CA	03-Sep-21		70025022 92014016		1,974	329	6
85	0010102-0010104		14-Aug-21	Qingdao, China		TLLU5626328	1 x 40'HQ	63.30	29-Aug-21	Los Angeles, CA	09-Sep-21		70025285		360	60	6
86	0010105-0010107		14-Aug-21	Qingdao, China		HDMU6712679	1 x 40'HQ	58.60	30-Aug-21	Los Angeles, CA	30-Aug-21		70025125 738335-01		354	59	6
89	0010108-0010109		18-Aug-21	Qingdao, China		205-49443542	AIR	10.40	20-Aug-21	Narita, Japan	28-Aug-21		70025339		1,710	9	190

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
90	0010110-0010112		14-Aug-21	Qingdao, China		CMAU5649358	1 x 40'HQ	59.70	5-Oct-21	Savannah, GA	10-Oct-21		70025278 4237476		1,200	200	6
93	0010113-0010115		23-Aug-21	Qingdao, China		TCKU1336114	1 x 20'	24.60	1-Oct-21	New York, NY	05-Oct-21		70025278 4237476		1,500	250	6
94	0010116-0010119		26-Aug-21	Qingdao, China		FANU1515054	1 x 40'HQ	65.00	15-Sep-21	Vancouver, Canada	25-Sep-21		70024979		12,000	2,000	6
95	0010120-0010125		25-Aug-21	Qingdao, China		TRHU4169955	1 x 40'HQ	66.50	29-Sep-21	Mobile, AL	13-Oct-21		70025022 92014028		3,432	572	6
96	0010126-0010128		25-Aug-21	Qingdao, China		TGBU4657684	1 x 40'HQ	21.80	29-Sep-21	Mobile, AL	13-Oct-21		70025022 92014028		1,716	286	6
97	0010129-0010138		25-Aug-21	Qingdao, China		MSDU9852970	1 x 40'RQ	55.40	28-Sep-21	Long Beach, CA	05-Oct-21		70025307		11,376	2,844	4
98	0010139-0010141		26-Aug-21	Qingdao, China		KOCU5107929	1 x 40'HQ	61.50	13-Sep-21	Los Angeles, CA	13-Sep-21		70025148 101006323		528	88	6

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
100	0010142-0010145		29-Aug-21	Qingdao, China		CXRU1620320	1 x 40'RQ	62.40	8-Sep-21	Los Angeles, CA	08-Sep-21		70025268 60 738244		594	99	6
101	0010146-0010148		29-Aug-21	Qingdao, China		TRIU8898202	1 x 40'RQ	51.02	20-Sep-21	Los Angeles, CA	30-Sep-21		70025224		2,316	386	6
102	0010149-0010152		28-Aug-21	Qingdao, China		CSNU7579070	1 x 40'HQ	60.90	24-Sep-21	Seattle, WA Transload to TN	04-Oct-21		70025086 637467		13,200	2,200	6
104	0010153-0010157		26-Aug-21	Qingdao, China		MSMU7660234	1 x 40'HQ	58.80	10-Oct-21	Vancouver, Canada	20-Oct-21		70024997		3,204	89	36
105	0010158-0010160		2-Sep-21	Qingdao, China		STCU9120295	1 x 40'HQ	65.50	22-Sep-21	Portland, OR	06-Oct-21		70025085		10,002	1,667	6
106	0010161-0010163		1-Sep-21	Qingdao, China		ZCSU7641454	1 x 40'HQ	47.60	28-Sep-21	Tampa, FL	28-Sep-21		70025164 0947124		3,600	600	6
110	0010164-0010166		2-Sep-21	Qingdao, China		FDCU0394434	1 x 40'HQ	65.60	20-Sep-21	Vancouver, Canada	28-Sep-21		70025038		8,100	900	9

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
111	0010167-0010169		30-Aug-21	Qingdao, China		LYGU4051035	1 x 40'HQ	55.70	10-Oct-21	New York, NY	15-Oct-2		70025078 100- 008900384 2		360	60	6
112	0010170-0010172		2-Sep-21	Qingdao, China		YMLU5417480	1 x 40'HQ	45.20	18-Sep-21	Tacoma, WA	18-Sep-2		70025225		1,536	256	6
113	0010173-0010175		1-Sep-21	Qingdao, China		RFCU5087626	1 x 40'HQ	60.20	17-Sep-21	Prince Rupert, Canada	24-Sep-2		70025205		5,004	834	6
114	0010176-0010178		2-Sep-21	Qingdao, China		OOCU8447275	1 x 40'HQ	62.60	29-Sep-21	Los Angeles, CA	02-Oct-2		70025148 10 100623		528	88	6
115	0010179-0010181		4-Sep-21	Qingdao, China		EISU8342801	1 X 40'HQ	63.20	26-Sep-21	Los Angeles, CA	26-Sep-2		70025126 10 100623		426	71	6
116	0010182-0010185		4-Sep-21	Qingdao, China		CXDU2346945	1 x 20'	11.10	20-Sep-21	Savannah, GA	Tacoma, WA		70025086 637467		1,800	300	6
121	0010186-0010190		5-Sep-21	Qingdao, China		QQIU8601958	1 x 40'HQ	69.30	20-Sep-21	Vancouver, Canada	28-Sep-2		70025038		23,400	2,600	9

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
122	0010191-0010193		10-Sep-21	Qingdao, China		SMCU1049752	1 x 40'HQ	55.50	3-Oct-21	Portland, Oregon	16-Oct-21		70025234		2,592	432	6
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123	0010194-0010197		12-Sep-21	Qingdao, China		TRHU4451172	1 x 40'HQ	65.30	13-Oct-21	Long Beach, CA	23-Oct-21		70025022 92014030		4,056	676	6
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124	0010198-0010202		12-Sep-21	Qingdao, China		CLHU9008787	1 x 40'HQ	63.70	??	Long Beach, CA	05-Dec-21		70025022 92014027		4,296	716	6
125	0010203-0010206		9-Sep-21	Qingdao, China		SMCU1122180	1 x 40'HQ	62.80	22-Sep-21	Vancouver, Canada	04-Oct-21		70025205		15,000	2,500	6
126	0010207-0010209		10-Sep-21	Qingdao, China		SMCU1169974	1 x 40'HQ	74.00	28-Sep-21	Long Beach, CA	23-Oct-21		70025038		14,679	1,631	9
129	0010210-0010214		14-Sep-21	Qingdao, China		FFAU3480420	1 x 40'HQ	66.20	27-Sep-21	Prince Rupert, Canada	06-Oct-21		70025205		8,208	1,368	6
130	0010215-0010217		15-Sep-21	Qingdao, China		SMCU1234283	1 x 40'HQ	65.50	4-Oct-21	Los Angeles, CA	28-Oct-21		70025275		318	53	6

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
131	0010218-0010221		15-Sep-21	Qingdao, China		MSMU5998979	1 x 40'HQ	62.80	4-Oct-21	Long Beach, CA	04-Oct-21		70025233 92151410		240	40	6
133	0010222-0010224		19-Sep-21	Qingdao, China		KSSU1002235	1 x 40'HQ	48.70	30-Oct-21	Tampa, FL	01-Nov-21		70025322 0947126		1,800	300	6
134	0010225-0010228		19-Sep-21	Qingdao, China		TCLU6823278	1 x 20'	22.60	14-Oct-21	Long Beach, CA	16-Oct-21		70025022 92014027		1,392	232	6
135	0010229-0010232		27-Sep-21	Qingdao, China		HHXU3120281	1x40'HQ	63.10	13-Oct-21	Los Angeles, CA	23-Oct-21		70025334		7,400	1,850	4
136	0010233-0010235		18-Sep-21	Qingdao, China		TCNU5190167	1x40'HQ	67.50	19-Oct-21	Vancouver, Canada	26-Oct-21		70025334		19,376	4,844	4
137	0010236-0010239		18-Sep-21	Qingdao, China		CCLU7219348	1x40'HQ	64.10	8-Oct-21	Prince Rupert, Canada	26-Oct-21		70025205		3,000	500	6
138	0010240-0010235		27-Sep-21	Qingdao, China		HHXU3118073	1x40'HQ	69.30	13-Oct-21	Los Angeles, CA	23-Oct-21		70025038		10,998	1,222	9

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
139	0010245-0010249		27-Sep-21	Qingdao, China		HHXU3110112	1x40'HQ	69.30	13-Oct-21	Los Angeles, CA	23-Oct-21		70025309		8,000	2,000	4
140	0010250-0010253		27-Sep-21	Qingdao, China		HHXU3120213	1x40'HQ	64.00	13-Oct-21	Los Angeles, CA	23-Oct-21		70025321		23,460	5,865	4
141	0010254-0010256		21-Sep-21	Qingdao, China		KKFU1309224	1x40'HQ	61.30	8-Oct-21	Vancouver, Canada	15-Oct-21		70025038		16,461	1,829	9
142	0010257-0010260		21-Sep-21	Qingdao, China		CCLU7107076	1x40'HQ	64.90	8-Oct-21	Vancouver, Canada	20-Oct-21		70025321		15,360	3,840	4
143	0010261-0010264		22-Sep-21	Qingdao, China		UACU6000941	1x40'HQ	65.50	21-Oct-21	Vancouver, Canada	06-Nov-21		70025038		18,000	2,000	9
144	0010265-0010268		24-Sep-21	Qingdao, China		WHSU5621943	1x40'HQ	63.60	5-Oct-21	Los Angeles, CA	05-Oct-21		70025140 01 738311		564	94	6
146			24-Sep-21	Qingdao, China		WHSU6102290	1 x 40'HQ	21.70	5-Oct-21	Los Angeles, CA	15-Oct-21		70025022 92014030		1,122	187	6

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
147	0010269-0010272		21-Sep-21	Qingdao, China		CCLU7107841	1x40'HQ	66.80	9-Oct-21	Prince Rupert, Canada	18-Oct-21		70025321		7,840	1,960	4
148	0010273-0010282		24-Sep-21	Qingdao, China		WHSU6503143	1 x 40'HQ	66.80	5-Oct-21	Los Angeles, CA	15-Oct-21		70025321		7,840	1,960	4
149	0010283-0010287		24-Sep-21	Qingdao, China		TGHU6503247	1 x 40'HQ	55.50	5-Oct-21	Los Angeles, CA	15-Oct-21		70025022 92014029		4,788	798	6
150	0010288-0010289		26-Sep-21	Qingdao, China		WHSU6503185	1 x 40'HQ	48.90	9-Oct-21	Los Angeles, CA	20-Oct-21		70025022 92014031		2,010	335	6
152	0010290-0010294		26-Sep-21	Qingdao, China		WHSU6503251	1 x 40'HQ	49.800	9-Oct-21	Los Angeles, CA	12-Oct-21		70025054 8459550		600	100	6
156	0010295-0010297		26-Sep-21	Qingdao, China		EISU8487430	1 x 40'	61.60	15-Oct-21	Los Angeles, CA	16-Oct-21		70025140 01 740302		1,584	264	6
157	0010298-0010302		26-Sep-21	Qingdao, China		KOCU4203471	1 x 40'	56.10	15-Oct-21	Los Angeles, CA	16-Oct-21		70025233 92151410		402	67	6

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
158	0010303-0010306		28-Sep-21	Qingdao, China		EGHU9596418	1 x 40'	62.40	15-Oct-21	Los Angeles, CA	16-Oct-21		70025269 07 740111		2,466	411	6
159	0010307-0010310		28-Sep-21	Qingdao, China		FCIU7522814	1 x 40'	62.90	15-Oct-21	Los Angeles, CA	16-Oct-21		70025269 01 740111		2,202	367	6
160	0010311-0010312		26-Sep-21	Qingdao, China		KKFU7668140	1 x 40'HQ	37.800	25-Oct-21	Los Angeles, CA	15-Nov-21		70025081 428575		1,800	300	6
161	0010313-0010318		26-Sep-21	Qingdao, China		HMMU6393749	1 x 40'HQ	69.300	14-Oct-21	Los Angeles, CA	25-Oct-21		70025309		8,000	2,000	4
162	0010319-0010323		26-Sep-21	Qingdao, China		HMMU6393754	1 x 40'HQ	69.300	14-Oct-21	Los Angeles, CA	25-Oct-21		70025309		3,804	951	4
163	0010324-0010329		26-Sep-21	Qingdao, China		NYKU4394920	1 x 40'HQ	69.300	14-Oct-21	Los Angeles, CA	3-Nov-21		70025309		8,000	2,000	4
164	0010330-0010334		26-Sep-21	Qingdao, China		KKFU7756580	1 x 40'HQ	65.470	14-Oct-21	Los Angeles, CA	3-Nov-21		70025321		8,500	2,125	4
166	0010335-0010341		29-Sep-21	Qingdao, China		SMCU1212561	1 x 40'HQ	65.200	18-Oct-21	Long Beach, CA	30-Oct-21		70025400		42,084	1,169	36

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs
175	0010342-0010345		8-Oct-21	Qingdao, China		TCLU9603580	1 x 40'HQ	63.700	17-Nov-21	Long Beach, CA	27-Nov-21		70025034 50 694957		1,200	200	6
176	0010346-0010349		8-Oct-21	Qingdao, China		NYKU4096801	1 x 40'HQ	59.300	17-Nov-21	Long Beach, CA	27-Nov-21		70025283		12	2	6
188	0010352-0010355		24-Oct-21	Qingdao, China		FCIU9785975	1 x 40'HQ	51.700	14-Nov-21	Los Angeles, CA	24-Nov-21		70025398		31,068	2,589	12
192	0010356-0010357		24-Nov-21	Qingdao, China		GCXU2127131	1 x 20'	23.40	8-Dec-21	Tacoma, WA	30-Jan-22		70025391		7,200	1,200	6
194	0010358-0010360		3-Dec-21	Qingdao, China		016-38113283	AIR	14.50	4-Dec-21	Narita, Japan	06-Dec-21		70025388		4,200	700	6

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
30	001001-0010004			RECEIVED											
42	0010005-0010009			RECEIVED											
43	0010010-0010012			RECEIVED											
44	0010013-0010016			RECEIVED											
46	0010017-0010021			RECEIVED											
47	0010022-0010025			RECEIVED											
48	0010026-0010029			RECEIVED											
49	0010030-0010034			RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
52	0010035-0010040			RECEIVED											
53				RECEIVED											
55	0010041-0010045			RECEIVED											
56	0010044-0010045			RECEIVED											
57	0010046-0010050			RECEIVED											
58	0010051-0010053			RECEIVED											
61	0010054-0010056			IN - Transit											
62	0010057-0010059			RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
63	0010060-0010063			DELIVERED											
64	0010064			RECEIVED											
65	0010065-0010067			RECEIVED											
66	0010068-0010070			DELIVERED											
67	0010070-0010073			RECEIVED											
73	0010074-0010077			DELIVERED											
74	0010078-0010079			RECEIVED											
76	0010080-0010082			9/30/21 DELIVERED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
79	0010083-0010086			RECEIVED											
80	0010087-0010089			10/12/21 - DELIVERED											
81	0010090-0010092			9/30/21 DELIVERED											
82	0010093-0010097			RECEIVED											
83	0010098-0010101			10/12/21 DELIVERED											
85	0010102-0010104			RECEIVED											
86	0010105-0010107			DELIVERED											
89	0010108-0010109		9/2 - SHORT	RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
90	0010110-0010112			DELIVERED cancel date: 9/10/29/21											
93	0010113-0010115			DELIVERED cancel date: 9/10/26/21											
94	0010116-0010119			RECEIVED											
95	0010120-0010125			DELIVERED 11/19/21											
96	0010126-0010128			DELIVERED 11/11/21											
97	0010129-0010138			RECEIVED											
98	0010139-0010141			PICKED UP											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
100	0010142-0010145			RECEIVED											
101	0010146-0010148			RECEIVED											
102	0010149-0010152			DELIVERED 12/7/21											
104	0010153-0010157			RECEIVED											
105	0010158-0010160			RECEIVED											
106	0010161-0010163			Picked Up 11/10/20 1											
110	0010164-0010166			RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
111	0010167-0010169		New Cancel d	PICKED UP 11/16/21											
112	0010170-0010172			IN - Transit											
113	0010173-0010175			RECEIVED											
114	0010176-0010178			RECEIVED											
115	0010179-0010181			PICKED UP											
116	0010182-0010185			DELIVERED 10/29/21											
121	0010186-0010190			RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
122	0010191-0010193			RECEIVED											
←															
123	0010194-0010197		12/3 - CANCEL	RECEIVED 1/19/22											
←															
124	0010198-0010202		12/3 - CANCEL	RECEIVED 1/24/22											
125	0010203-0010206			RECEIVED											
126	0010207-0010209			RECEIVED											
129	0010210-0010214			RECEIVED											
130	0010215-0010217			RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
131	0010218-0010221			PICKED UP 11/18/21											
133	0010222-0010224			PICKED UP 11/30/21											
134	0010225-0010228			DELIVERED 11/29											
135	0010229-0010232			RECEIVED											
136	0010233-0010235			RECEIVED											
137	0010236-0010239			RECEIVED											
138	0010240-0010235														
			QDCL052335	RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
139	0010245-0010249		QDCL052336	RECEIVED											
140	0010250-0010253		QDCL052377	RECEIVED											
141	0010254-0010256			RECEIVED											
142	0010257-0010260			RECEIVED											
143	0010261-0010264			RECEIVED											
144	0010265-0010268			PICKED UP 11/12/21											
146				DELIVERED 11/19/21											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
147	0010269-0010272			RECEIVED											
148	0010273-0010282			RECEIVED											
149	0010283-0010287			DELIVERED 11/29 & 12/1											
150	0010288-0010289			DELIVERED 12/1/21											
152	0010290-0010294			DELIVERED 11/11/21											
156	0010295-0010297			PICKED UP											
157	0010298-0010302			RECEIVED 1/28/22											
			CANCELLED -												

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
158	0010303-0010306			PICKED UP 11/11/21											
159	0010307-0010310			PICKED UP 11/11/21											
160	0010311-0010312		wining Tea f	RECEIVED 1/14/22											
161	0010313-0010318			RECEIVED 1/13/21											
162	0010319-0010323			RECEIVED 1/19/22											
163	0010324-0010329			RECEIVED 1/14/22											
164	0010330-0010334			RECEIVED 1/19/22											
166	0010335-0010341			RECEIVED											

FILE #	Bates Nos.	Shipper Inv#	COMMENTS	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis
175	0010342-0010345			RECEIVED 1/14/22											
176	0010346-0010349			RECEIVED											
188	0010352-0010355			RECEIVED											
192	0010356-0010357			RECEIVED											
194	0010358-0010360		12/9 - 21 cases open - missing items inside & 7 cases missing	RECEIVED											

FILE #	Bates Nos.	Carrier	Total FRT Expenses
30	001001-0010004		
42	0010005-0010009		
43	0010010-0010012		
44	0010013-0010016		
46	0010017-0010021		
47	0010022-0010025		
48	0010026-0010029		
49	0010030-0010034		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
52	0010035-0010040		
53			
55	0010041-0010045		
56	0010044-0010045		
57	0010046-0010050		
58	0010051-0010053		
61	0010054-0010056		
62	0010057-0010059		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
63	0010060-0010063		
64	0010064		
65	0010065-0010067		
66	0010068-0010070		
67	0010070-0010073		
73	0010074-0010077		
74	0010078-0010079		
76	0010080-0010082		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
79	0010083-0010086		
80	0010087-0010089		
81	0010090-0010092		
82	0010093-0010097		
83	0010098-0010101		
85	0010102-0010104		
86	0010105-0010107		
89	0010108-0010109		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
90	0010110-0010112		
93	0010113-0010115		
94	0010116-0010119		
95	0010120-0010125		
96	0010126-0010128		
97	0010129-0010138		
98	0010139-0010141		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
100	0010142-0010145		
101	0010146-0010148		
102	0010149-0010152		
104	0010153-0010157		
105	0010158-0010160		
106	0010161-0010163		
110	0010164-0010166		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
111	0010167-0010169		
112	0010170-0010172		
113	0010173-0010175		
114	0010176-0010178		
115	0010179-0010181		
116	0010182-0010185		
121	0010186-0010190		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
122	0010191-0010193		
←			
123	0010194-0010197		
←			
124	0010198-0010202		
125	0010203-0010206		
126	0010207-0010209		
129	0010210-0010214		
130	0010215-0010217		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
131	0010218-0010221		
133	0010222-0010224		
134	0010225-0010228		
135	0010229-0010232		
136	0010233-0010235		
137	0010236-0010239		
138	0010240-0010235		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
139	0010245-0010249		
140	0010250-0010253		
141	0010254-0010256		
142	0010257-0010260		
143	0010261-0010264		
144	0010265-0010268		
146			

FILE #	Bates Nos.	Carrier	Total FRT Expenses
147	0010269-0010272		
148	0010273-0010282		
149	0010283-0010287		
150	0010288-0010289		
152	0010290-0010294		
156	0010295-0010297		
157	0010298-0010302		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
158	0010303-0010306		
159	0010307-0010310		
160	0010311-0010312		
161	0010313-0010318		
162	0010319-0010323		
163	0010324-0010329		
164	0010330-0010334		
166	0010335-0010341		

FILE #	Bates Nos.	Carrier	Total FRT Expenses
175	0010342-0010345		
176	0010346-0010349		
188	0010352-0010355		
192	0010356-0010357		
194	0010358-0010360		

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs	Shipper Inv#
30	0010361-0010365		31-Jul-21	Qingdao, China		FSCU85652	1 x 40'HQ	40.40	25-Aug-21	Los Angeles, CA	02-Sep-21		70025023 92014016		4,716	393	12	
31	0010366-0010369		1-Aug-21	Qingdao, China		CAIU769500	1 x 40'HQ	33.70	25-Aug-21	Los Angeles, CA	25-Aug-21		70025023 92013993		4,284	357	12	
37	0010370-0010372		2-Sep-21	Qingdao, China		DRYU60893	1 x 40'HQ	69.36	20-Sep-21	Vancouver, Canada	29-Sep-21		70025049		4,200	700	6	
38	0010373-0010376		20-Jul-21	Qingdao, China		TRHU48954	1 x 40'HQ	35.50	14-Aug-21	Los Angeles, CA	24-Aug-21		70025023 92014013		4,380	365	12	
39	0010377-0010380		18-Jul-21	Qingdao, China		TGBU80398	1 x 40'HQ	41.00	20-Aug-21	New York, NY	25-Aug-21		70025023 92014014		5,040	420	12	
40	0010381-0010384		23-Jul-21	Qingdao, China		CICU225743	1 x 40'HQ	32.00	12-Aug-21	Los Angeles, CA	25-Aug-21		70025023 92014015		3,516	293	12	
43	0010385-0010387		25-Aug-21	Qingdao, China		TGBU46576	1 x 40'HQ	34.60	6-Oct-21	Mobile, AL	13-Oct-21		70025023 92014028		5,868	489	12	
62			24-Sep-21	Qingdao, China		WHSU6102	1 x 40'HQ	39.50	5-Oct-21	Los Angeles, CA	15-Oct-21		70025023 92014030		2,886	481	6	

FILE #	Bates Nos.	SHIPPER	ETD POL	PORT OF LOADING	DESTINATION	Container #	CNTR SIZE	Total CBM	ETA/US 1st Port	POD	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs	Shipper Inv#
65	0010388-0010393		2-Oct-21	Qingdao, China		KOCU43709	1 x 40'HQ	41.70	21-Oct-21	Los Angeles, CA	31-Oct-21		70025049		4,200	700	6	

FILE #	Bates Nos.	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis	Carrier	Total FRT Expenses
30	0010361-0010365	10/12/21 DELIVERE													
31	0010366-0010369	9/30/21 DELIVERE													
37	0010370-0010372	RECEIVED													
38	0010373-0010376	DELIVERE													
39	0010377-0010380	RECEIVED													
40	0010381-0010384	DELIVERE													
43	0010385-0010387	DELIVERE 11/11/21													
62		DELIVERE 11/19/21													

FILE #	Bates Nos.	Delivery Status	No of Containers	Hyundai Total Rate	Hyundai SC Rate	Actual Freight Charges	Hyundai SC	Hyundai Difference	DUTY	CHB Charges	INSURANCE	TRANSLOAD + TRUCK	Chassis	Carrier	Total FRT Expenses
65	0010388-0010393	RECEIVED													

FILE #	Bates Nos.	ETA Destination	Vendor	PO #	ITEM #	# Pieces	# Cartons	Unit Packs	Shipper Inv#	COMMENT S	Delivery Status	No. of Containers	Total Hyundai Rate	Hyundai SC Rate	Freight Charges	Hyundai SC	Hyundai Difference
9	0010407-0010409	31-Aug-21		70025024		510	85	6	521220026		RECEIVED						
10	0010410-0010411	21-Aug-21		70025189		2,340	390	6	521220031		RECEIVED						
19	0010415-0010416	5-Nov-21		70025420		6,300	525	12	520220084		RECEIVED						
20	0010417-0010418	23-Jan-22		70025476		8,502	1,417	6	521220104		RECEIVED						

FILE #	Bates Nos.	DUTY	CHB Charges	INSURANCE	TRUCK Rate	Chassis	Carrier	Total FRT Expenses
9	0010407-0010409							
10	0010410-0010411							
19	0010415-0010416							
20	0010417-0010418							

EXHIBIT 2

**CONFIDENTIAL - Christopher McDonald
MSRF, Inc. v. HMM Company Limited**

CONFIDENTIAL
BEFORE THE
FEDERAL MARITIME COMMISSION

MSRF, Inc.,

Complainant,

vs.

Docket No. 22-20

HMM Company Limited,

Respondent.

The deposition of CHRISTOPHER
MCDONALD, taken in the above-entitled cause, before
Joanne M. Gagliardi, a Certified Shorthand Reporter
and Registered Professional Reporter of the State of
Illinois, on Friday, March 3, 2023, at Suite 1800,
123 North Wacker Drive, Chicago, Illinois, commencing
at 11:30 o'clock a.m.

REPORTED BY: Joanne M. Gagliardi, CSR, RPR
LICENSE NO.: 084-002466
JOB NO.: 21228

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**CONFIDENTIAL - Christopher McDonald
MSRF, Inc. v. HMM Company Limited**

Page 2 1 APPEARANCES: 2 3 CLARK HILL, PLC 4 BY MR. KEVIN WILLIAMS 5 130 East Randolph Street 6 Suite 3900 7 Chicago, Illinois 60601 8 312-985-5900 9 kwilliams@clarkhill.com 10 Appeared on behalf of Complainant; 11 12 COZEN O'CONNOR 13 BY MR. NEIL A. QUARTARO 14 3 WTC, 175 Greenwich Street 15 55th Floor 16 New York, New York 10007 17 212-453-3934 18 nquartaro@cozen.com 19 and 20 MS. KATHRYN SOBOTTA 21 1200 Nineteenth Street, NW 22 Suite 300 23 Washington, DC 20036 24 202-463-2528 ksobotta@cozen.com Appeared on behalf of Respondent; HMM (America), Inc. BY MR. ED KANG 222 W. Las Colinas Blvd Suite 700 Irving, Texas 75039 972-501-1150 ekangbs@hmm21.com	Page 4 1 (Witness sworn.) 2 CHRISTOPHER McDONALD, 3 having been first duly sworn, was examined and 4 testified as follows: 5 DIRECT EXAMINATION 6 BY MR. WILLIAMS: 7 Q. Good morning, Mr. McDonald. Still 8 morning, isn't it? Yes. 9 A. Good morning. 10 Q. I'm Kevin Williams. I am the attorney for 11 MSRF, Inc., who is the complainant in this case, 12 MSRF, Inc. v. HMM Company Limited, Docket No. 22-20 13 before the Federal Maritime Commission. 14 Have you ever been deposed before? 15 A. No. 16 Q. So the purpose of this is to ask you some 17 questions about information that we've already shared 18 amongst each other to develop the facts of this case. 19 I'm not going to ask you any trick questions. It's 20 just here to get information. If something that I 21 ask you appears to be a trick question, it's 22 inadvertent. Ask me to clarify it, and we'll get it 23 sorted out. 24 Our court reporter is taking down
Page 3 1 INDEX 2 CHRISTOPHER McDONALD 3 4 PAGE 5 MR. WILLIAMS: 6 7 DIRECT EXAMINATION 4 8 9 10 INDEX TO EXHIBITS 11 NUMBER MARKED FOR ID 12 Exhibit Mc1 Verified Complaint 8 13 Exhibit Mc2 Service Contract 11 14 Exhibit Mc3 Emails 16 15 16 17 18 19 20 21 22 23 24	Page 5 1 everything that we say. So to help her with her job 2 it's better that we -- you let me finish my question 3 and then you answer. We take turns, rather than talk 4 over each other because that messes up the 5 transcript, and makes Neil and my job more difficulty 6 down the road. So wait until I finish the question 7 and then answer it. 8 Also give audible answers, yes, no, or 9 more explanation, rather than nodding your head or 10 shaking your head -- 11 A. I understand. 12 Q. -- because she can't take that down. As I 13 said, if you don't understand a question, ask me to 14 rephrase it and I will. If you do answer it, then we 15 assume that you've understood the question. 16 A. I understand. 17 Q. Okay. Question we have to answer, no 18 offense intended. Have you -- are you on any 19 medications or have you used any substances today 20 that would affect your ability to testify here? 21 A. No. 22 Q. Okay. Good. We can take a break if you 23 need to. 24 A. I'm good.

2 (Pages 2 to 5)

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Page 6	1 Q. Okay. And we're not going to be here that 2 long I don't think; but if you do need to excuse 3 yourself for a minute, fine. Just ask that if 4 there's a question pending, before we can take a 5 break you'll need to answer it. 6 A. I understand. 7 Q. Okay. Can you state your full name for 8 the record. 9 A. Christopher McDonald. 10 Q. And where do you reside? 11 A. Batavia, Illinois. 12 Q. What's your educational background? 13 A. I have a Bachelor's degree in history and 14 anthropology. 15 Q. From where? 16 A. University of Toledo, Ohio. 17 Q. What year did you graduate? 18 A. 1992, yeah, '92. 19 Q. Okay. In addition to your Bachelor's 20 degree do you have any professional certificates or 21 licenses such as a customs broker's license or 22 anything like that? 23 A. No. 24 Q. What is your current -- who are you	Page 8	1 A. My duties and responsibilities are to act 2 as an -- act as an advocate for the customer with HMM 3 while at the same time also promoting services that 4 HMM is offering. 5 Q. And what's your relationship with MSRF? 6 A. Beyond them being my customer, I don't 7 have a relationship with them. 8 Q. As a -- 9 A. They are my customer. They are my 10 customer. 11 Q. And how long have they been your customer? 12 A. Since initially they -- I guess it would 13 have been late 2020. I don't quite recall when it 14 was assigned to me. 15 Q. Okay. And who was your main contact at 16 MSRF? 17 A. Main contact was Rochi. 18 Q. Rochi Marisol? 19 A. Rochi Marisol, yes. 20 Q. So I'm going to show you Exhibit M1, R1, 21 H1, and we'll -- since we've already got an M, we'll 22 do Mc1. 23 (McDonald Deposition, Exhibit Mc1 24 was marked for identification.)
Page 7	1 employed by? 2 A. I'm currently employed by HMM. 3 Q. And they're the respondent in this case? 4 A. Yes, I believe so. 5 Q. And what's your position? 6 A. I'm an account executive. 7 Q. And what is an account executive? 8 A. I'm a salesperson. 9 Q. And how long have you had that position? 10 A. Just over four years. I just had my 11 four-year anniversary. 12 Q. How long have you been with HMM? 13 A. Four years, just -- 14 Q. Prior to that? 15 A. Prior to that I was with Maersk Line. 16 Q. In a similar position? 17 A. Several different positions, but, yes, 18 similar position for 13 years. 19 Q. And so you've been in the maritime 20 industry since your graduation? 21 A. Virtually, yes. I think '93 or '94 was my 22 first job in the industry. 23 Q. Okay. As an account executive, what are 24 your duties and responsibilities?	Page 9	1 Q. Have you seen this before? 2 A. This is the Complaint, yes. 3 Q. I ask you to turn to page 5 and paragraph 4 24. 5 A. Yes. 6 Q. What does that say? Could you read it. 7 A. "MSRF and respondent entered into a 8 written service contract (SC US2124083) as that term 9 is defined by 46 U.S.C. Section 40102(21) effective 10 as of May 1, 2021." 11 Q. To the best of your recollection is this 12 the service contract with MSRF? 13 A. Yes. 14 Q. And you negotiated that contract with 15 them? 16 A. Yes. 17 Q. How did that negotiation proceed? What 18 are the steps in negotiating a service contract? 19 A. Typical negotiation would be the customer 20 tells us what they're looking for as far as lanes to 21 be serviced. We therein verify whether or not we can 22 service those lanes, because we do not go everywhere. 23 And then after that we start discussing price points 24 as far as rates for those lanes.

3 (Pages 6 to 9)

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Page 10	1 Q. And then during the time period that you 2 were negotiating this contract with MSRF what was the 3 state of the shipping industry at that time? 4 A. Immediately under the initial negotiation 5 the shipping industry was very typical. Carriers 6 were looking for customers, and so this was a very 7 atypical type of negotiations. They wanted to bring 8 on a carrier. We wanted to bring on a customer with 9 a new contract, and so negotiations proceeded. 10 Q. Okay. Then after this was negotiated, 11 what happened in the shipping industry? 12 A. Okay. So -- 13 Q. Talking about what was the impact of 14 COVID, all those issues that we're all familiar with? 15 A. So the -- from 2020 into 2021 and 2022 the 16 entire ocean shipping market was in flux whereby 17 there was more demand than there was available space. 18 Customers were looking to ship more cargo than 19 carriers had capacity for. 20 Q. And what was the cause of that reduced 21 capacity, do you know? 22 A. Well, again, I'll point out it wasn't 23 reduced capacity. It was complete capacity. There 24 was more cargo than there was space available. A	Page 12	1 A. The minimum quantity commitment, the MQC, 2 is ■ Fs from Asia to the U.S. Yeah, ■ Fs. 3 Q. And then go back to page 7, paragraph 8. 4 MR. QUARTARO: Can I just make one 5 request? Rather than Fs, can we use FEUs, just 6 so all four transcripts have the same reference 7 if we can. Is that okay? 8 THE WITNESS: Absolutely, no problem. 9 40-foot equivalent unit, yeah. 10 Page 7, yes. 11 BY MR. WILLIAMS: 12 Q. Paragraph 8. 13 A. Paragraph 8, yes, Duration. 14 Q. And the duration was? 15 A. May 1, 2021, to April 30, 2022. 16 Q. Okay. And is it standard for the service 17 contract to have an initial term of one year? 18 A. Yes, very typical. That's the most 19 typical thing I would think. 20 Q. If we go back to -- further back. I 21 should have written down what page this was before. 22 MR. QUARTARO: Which one are you headed 23 to? 24 MR. WILLIAMS: I'm headed to 13.
Page 11	1 very simple explanation would be more passengers 2 booking in an airplane than there are seats on the 3 plane. 4 Q. Understood. That's a good analogy. So 5 the service contract that was negotiated here is 6 going to be Mc2. 7 (McDonald Deposition, Exhibit Mc2 8 was marked for identification.) 9 Q. So this is the service contract US2124083 10 that's referenced in the Complaint; is that correct? 11 A. Yes. 12 Q. And the AMD 000? 13 A. That just represents the initial service 14 contract. 15 Q. And the effective date was? 16 A. May 1st. 17 Q. Of? 18 A. 2021. 19 Q. And it was with MSRF, correct? 20 A. That is correct. 21 Q. Go to the second page of the contract, 22 paragraph 4. 23 A. Yes. 24 Q. What is that --	Page 13	1 MS. SOBOTTA: 175. 2 MR. WILLIAMS: Thank you, Katie. 3 BY MR. WILLIAMS: 4 Q. So is it -- 5 A. I'm sorry. Got it. I was looking at 6 the -- got it, 175. I've got it. 7 Q. These numbers at the bottom right corner 8 are what we call Bates numbers, and they will be -- 9 we use those to sequentially number documents that we 10 share back and forth during litigation. 11 A. Thank you. I've got 175. 12 Q. And so what is this? 13 A. This appears to be the cover page for 14 amendment 13 of service contract US2124083. 15 Q. And the effective date? 16 A. Effective date on the next page -- 17 Q. Actually it's the top to the right of the 18 amendment? 19 A. Oh, April 29th of 2022. 20 Q. So this was just two days -- one day 21 before the expiration of the original contract? 22 A. Yes, that is correct. 23 Q. And go to the next page. Oh, I'm sorry. 24 I wanted to go to amendment 12.

4 (Pages 10 to 13)

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Page 14 1 MS. SOBOTTA: I think it's 168. -- no, I 2 have it wrong. 162. 3 BY MR. WILLIAMS: 4 Q. Do you see that? 5 A. Yes, I see it. 6 Q. That's amendment 12? 7 A. Amendment 12, yes. 8 Q. Effective date? 9 A. Effective date of April 13, 2022. 10 Q. And on the next page that shows what is -- 11 paragraph 4, what does that show? 12 A. Minimum quantity commitment of █ FEU. 13 Q. And what was the purpose of that 14 amendment? 15 A. The purpose of the amendment was to █ 16 the MQC █ to units moved to be filed before the 17 contract expired. 18 Q. And is this a typical amendment that 19 occurs in service contracts? 20 A. Yes. 21 Q. And the purpose of amending it █ is to 22 do what? 23 A. The purpose of amending it █ is to 24 avoid any penalty phase that might be associated with	Page 16 1 the contract is extended. An amendment is filed with 2 the FMC. 3 Q. So what is your role in this -- I think 4 we're done with the service contract for now. What 5 is your role in the client relationship after the 6 service contract is signed? 7 A. As I mentioned earlier, to act as a bridge 8 or to act as an advocate for the customer within the 9 company. 10 Q. So let's go to the packet of emails which 11 was H3 for Ms. Hopman's, and we'll make this Mc3. 12 (McDonald Deposition, Exhibit Mc3 13 was marked for identification.) 14 Q. So these are a selection of emails that -- 15 back and forth between HMM and MSRF and also within 16 HMM related to this contract. 17 A. Okay. 18 Q. Okay. And I hope you recovered from your 19 PTSD. That's mentioned here in the first page. 20 Go to the second page of this page 365 21 at the bottom. Read that first -- your response to 22 Rochi on June 15, 2021, to refresh your recollection, 23 and then if you can tell us what that's about? 24 A. Read it out loud?
Page 15 1 a shortfall of meeting MQC. 2 Q. Now, let's go to 13 on page 175. 3 A. Okay. 4 Q. So this is the one that we had previously 5 started talking about that was effective on April 6 29th, so couple weeks later after amendment 12. And 7 go to page 176, and what does that show us, paragraph 8 4? 9 A. MQC was -- the MQC was increased back to 10 █ FEUs. 11 Q. Do you recall why that was done? 12 A. It was done because the contract was 13 extended. 14 Q. And that was extended to what date? 15 A. I believe it was July 8. 16 Q. Okay. That's correct. And we know that 17 is on paragraph 8 of the agreement. Okay. Is it 18 typical for contracts to be extended in this manner? 19 A. Yes, yes. If the contract were to expire 20 and there was business left to be done, it creates a 21 problem, and a whole new contract would have to be 22 enacted. So an easier solution to any kind of 23 changes that might need to be made or any kind of 24 need to continue business in a short-term fashion,	Page 17 1 Q. Just read it to yourself. 2 A. (Witness examines document.) 3 Okay. 4 Q. So what are you responding to here? 5 A. It appears that the -- this particular 6 booking had to be rerouted over a transshipment 7 point, and the transshipment added an extra █ to 8 the cost, and I was informing Rochi of this. 9 Q. And I believe this was -- was this an 10 export shipment perhaps? 11 A. Yes, it was actually. Yeah, this was TP 12 west not TP east. 13 Q. And what does TPC stand for? 14 A. You know what, I don't recall. That's the 15 name of the ocean terminal. Tacoma Pacific maybe. 16 Q. That's okay. 17 A. Actually I believe it's TraPac. 18 Apologies. 19 Q. Okay. That's fine. So let's go to page 20 527? 21 A. Five-two-seven? 22 Q. Yes. 23 A. Okay. 24 Q. It appears to me that this email string

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Page 18	1 here relates to the amendment 14 in this service 2 contract. Are you familiar with amendment 14? 3 A. Yes. 4 Q. What was that? 5 A. The amendment 14 was the extension, 6 extension of the service contract to -- for ten 7 weeks. 8 Q. That was 13. I think 14 was an amendment 9 to add a Houston lane. 10 A. Okay. If -- 11 Q. Okay. I'll represent to you that that's 12 what it was. 13 A. Okay. Thank you. 14 Q. And I really don't have much to ask about 15 that. 16 A. Okay. 17 Q. When you're negotiating a service 18 contract, how do you set the MQC? 19 A. It's -- it's an -- it's a discussion 20 between the customer and the carrier. So the 21 customer is going to have a number that they're 22 comfortable with based on their regular business. 23 And then for the carrier, honestly it really has more 24 to do with what the limit is. So in our particular	Page 20	1 priority in allocation? 2 A. What it's supposed to do is it's supposed 3 to demonstrate the commitment of the customer for 4 continuing their business, and it's supposed to 5 indicate to overseas a priority. 6 Q. But it's not a guarantee? 7 A. No, it is not a guarantee. 8 Q. Let's go to 26445, and this is an email 9 from Laura Trometer on June 4, 2021, to various 10 addresses within the company, and you're copied on 11 this email. And what's this -- what is this 12 referring to? What's going on based on these emails? 13 A. It appears that Laura has reached out to 14 the booking office overseas and is informing them 15 that the service contract has been amended to include 16 peak and the name of I believe it would be the 17 shipper of record, Qingdao gift packers. 18 Q. So the -- 19 A. And then questioning about available 20 space. 21 Q. So the contract as originally negotiated 22 did not include the peak season surcharge? 23 A. No. 24 Q. So one of these other amendments in here
Page 19	1 case, HMM, the lowest MQC that we're able to contract 2 with is [REDACTED] FEU. 3 Q. Okay. 4 A. And that was the number that was 5 comfortable for MSRF. 6 Q. Let's go to page 26379. 7 A. 26379, okay. Just a moment. 8 Q. In the first part of this email from 9 you -- this is on June 2nd, 2021, from you to Laura 10 Trometer. I hope I'm saying here name correctly? 11 A. Trometer. 12 Q. What is her role at HMM? 13 A. She is sales support. 14 Q. And does she report to you? 15 A. No, she does not. 16 Q. What is this sentence that says: "They 17 should be getting [REDACTED] F" -- and I assume that means 1 18 FEU -- "a week with their PEK." What is that 19 referring to? 20 A. That refers to getting one 40-foot 21 equivalent container per week based on an increased 22 rate for peak season surcharge. 23 Q. Does the peak season surcharge -- if you 24 have the peak season surcharge, does that give you	Page 21	1 added that to the contract? 2 A. Yes. That was negotiated with MSRF. 3 Q. So it's my understanding that MSRF or most 4 shippers will -- are asked to provide forecasts of 5 their needs? 6 A. We request them. It's a give and take, 7 but, yes, we request them. It's up to the customer 8 to meet them. It's up to the carriers to try and, 9 you know, work with them on that forecast when 10 they're provided. 11 Q. So let's go to 26465. 12 A. 26465, okay. 13 Q. And that's an email from Daniel Wang at 14 HMM on June 7, 2021, to various people including you; 15 and he's stating that -- and he's apparently at HMM 16 Qingdao. He's stating that: "MSRF does not have 17 space allocation on PS6 but on PN only." Can you 18 explain what that means? 19 A. It's just a service designation. PS6 is a 20 service that routes to southern California over Los 21 Angeles, and PN is services represented over Pacific 22 Northwest, primarily Tacoma. 23 Q. So the service contract provided rates for 24 shipping on various lanes, okay?

6 (Pages 18 to 21)

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Page 22 1 A. Negotiated with MSRF, yes. 2 Q. Okay. Once those lanes are included in 3 the service contract, how does the allocation that's 4 referred to in this email occur? 5 A. I don't know that. That's beyond my 6 scope. 7 Q. Okay. So if one of the lanes in the 8 service contract would include shipments to PN, which 9 we understand from Ms. Hopman previously is from 10 Pacific Northwest, right? 11 A. Yes. 12 Q. If one of those lanes was included in the 13 service contract but they didn't get allocation, how 14 could that happen? 15 A. Well, if they didn't get allocation, it 16 would just mean that the vessel was overbooked. 17 Q. And is this indicating that they are now 18 getting an allocation on the PN? 19 A. I don't know. It just refers to the fact 20 that they don't have it over PS6, but they do have it 21 on PN only, according to the email. 22 Q. Does HMM currently have a service contract 23 with MSRF? 24 A. No.	Page 24 1 A. This appears to be an email from Rochi 2 Marisol. 3 Q. Okay. Asking you to do what? 4 A. It says: We are looking for space at the 5 end of the month for one-forty from Qingdao to 6 Houston. Your Quingdao office declined the booking. 7 Since it's declined, the shippers do not have a 8 booking number. Is there a way you can help us get 9 space for one-forty foot high cube to Houston." 10 Q. Okay. And this relates to amendment 14; 11 is that correct, amendment 14 that added the Houston 12 lane to the service contract? 13 A. If you say so. 14 Q. Yeah. 15 MR. WILLIAMS: Is that okay; we're agreed 16 on that? 17 MR. QUARTARO: We're fine. We can 18 stipulate amendment 14 is the add to the Qingdao 19 use lane. 20 BY MR. WILLIAMS: 21 Q. If you go to the previous page, 626, you 22 then reached out to Ms. Hopman for advice on this, 23 right? 24 A. Yes. Yes.
Page 23 1 Q. Have you been asked by MSRF to negotiate a 2 new service contract? 3 A. A new service contract, no. 4 Q. What is HMM's practice with respect to 5 accepting shipment requests in excess of an MQC? 6 A. Well, it would depend on the capacity at 7 that time. During the flux in the market that most 8 of this occurred it -- honestly, it may not have been 9 allowed. The way the market is right now where there 10 is more capacity than there is request for cargo, the 11 contract would be probably amended as such so that 12 they could do that. 13 Q. Would an amendment be necessary, or would 14 they -- 15 A. Actually probably not. They would just 16 let them keep shipping, as long as it was within the 17 effective dates. 18 Q. I just have a couple more questions. On 19 the email package again, let's go to 626. 20 A. 626, okay. Just a moment. 21 Q. If you go to the next page in this email 22 string. 23 A. So 627? 24 Q. 627, yes. And that's -- what is that?	Page 25 1 Q. And then what was the outcome of this 2 request to book a shipment on this -- 3 A. I believe it was booked. 4 Q. Okay. 5 A. Because I know we had at least one booking 6 to Houston. 7 Q. But then at a certain point as the 8 contract was expiring, no further bookings would be 9 accepted; is that correct? 10 A. I'm not sure I understand the question. 11 Q. Okay. The service contract as extended 12 expired on July 8. At a certain point approaching 13 that date -- 14 A. We were told that all bookings would be 15 accepted as long as the containers could be pulled by 16 July 8th. 17 Q. Okay. And what do you mean by "containers 18 pulled by" -- 19 A. The container was taken as receipt by the 20 shipper, by the shipper in question. 21 Q. Okay. So -- 22 A. Overseas. 23 Q. So, for example -- 24 A. As long as they pulled it out.

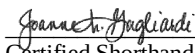
7 (Pages 22 to 25)

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Page 26 1 Q. Pulled it out of where? 2 A. The container yard for loading by July 3 8th, we were directed to allow them to make the 4 bookings. 5 Q. So if it came out of the container yard in 6 Qingdao by July 8th, went to Qingdao gift packers, 7 was loaded and came back, you would accept that? 8 A. Yes. 9 Q. So one last question: Who is Donald 10 Larsen? 11 A. Donald Larsen is the midwest export sales 12 manager. 13 Q. So he's - 14 A. He is the equivalent of Sophia Hopman but 15 on the export side. 16 MR. WILLIAMS: Okay. Perfect. Okay. I 17 have nothing further. You spent more time on 18 the train than -- 19 THE WITNESS: That's fine. That happens. 20 MR. QUARTARO: I don't have any 21 follow-ups. I'm good. 22 (Whereupon the deposition 23 concluded at 11:49 a.m.) 24	Page 28 1 STATE OF ILLINOIS) 2)SS. 3 COUNTY OF COOK) 4 5 I, JOANNE M. GAGLIARDI, CSR, RPR, do 6 hereby certify that CHRISTOPHER McDONALD, was by me 7 first duly sworn to testify to the truth, the whole 8 truth, and nothing but the truth, and that the above 9 deposition was recorded stenographically by me and 10 reduced to computer-aided transcription by me. 11 I FURTHER CERTIFY that the foregoing 12 transcript of the said deposition is a true, correct, 13 and complete transcript of the testimony given by the 14 said witness at the time and place specified 15 hereinbefore. 16 I FURTHER CERTIFY that I am not a 17 relative or employee or attorney or counsel of any of 18 the parties, nor a relative or employee of such 19 attorney or counsel, or financially interested 20 directly or indirectly in this action. 21 22 23 24
Page 27 1 BEFORE THE 2 FEDERAL MARITIME COMMISSION 3 MSRF, Inc., 4 Complainant, 5 vs. Docket No. 22-20 6 HMM Company Limited, 7 Respondent. 8 9 10 I, CHRISTOPHER McDONALD, being first 11 administered an oath, say that I am the deponent in 12 the aforesaid deposition taken on March 3, 2023; that 13 I have read the foregoing transcript of my 14 deposition, and affix my signature to same. 15 16 _____ 17 Christopher McDonald 18 19 20 Subscribed and sworn to 21 before me this _____ day 22 of _____, 2023. 23 _____ 24 Notary Public	Page 29 1 I FURTHER CERTIFY that my certificate 2 annexed hereto applies to the original and typed 3 transcripts only, signed and certified transcripts 4 only. I assume no responsibility for the accuracy of 5 any reproduced copies not made under my control or 6 direction. 7 IN WITNESS WHEREOF, I have hereunto 8 set my hand this 16th day of March, 2023. 9 10  11 Certified Shorthand Reporter 12 Registered Professional Reporter 13 C.S.R. No. 084-002466 14 15 16 17 18 19 20 21 22 23 24

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EXHIBIT 3

**CONFIDENTIAL - Sophia Hopman
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CONFIDENTIAL
BEFORE THE
FEDERAL MARITIME COMMISSION

MSRF, Inc.,

Complainant,

vs.

Docket No. 22-20

HMM Company Limited,

Respondent.

The deposition of SOPHIA HOPMAN,
taken in the above-entitled cause, before Joanne M.
Gagliardi, a Certified Shorthand Reporter and
Registered Professional Reporter of the State of
Illinois, on Friday, March 3, 2023, at Suite 1800,
123 North Wacker Drive, Chicago, Illinois, commencing
at 9:30 o'clock a.m.

REPORTED BY: Joanne M. Gagliardi, CSR, RPR
LICENSE NO.: 084-002466
JOB NO.: 21228

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1 APPEARANCES: 2 3 CLARK HILL, PLC 4 BY MR. KEVIN WILLIAMS 5 130 East Randolph Street 6 Suite 3900 7 Chicago, Illinois 60601 8 312-985-5900 9 kwilliams@clarkhill.com 10 Appeared on behalf of Complainant; 11 12 COZEN O'CONNOR 13 BY MR. NEIL A. QUARTARO 14 3 WTC, 175 Greenwich Street 15 55th Floor 16 New York, New York 10007 17 212-453-3934 18 nquartaro@cozen.com 19 and 20 MS. KATHRYN SOBOTTA 21 1200 Nineteenth Street, NW 22 Suite 300 23 Washington, DC 20036 24 202-463-2528 ksobotta@cozen.com Appeared on behalf of Respondent; ALSO PRESENT: HMM (America), Inc. BY MR. ED KANG 222 W. Las Colinas Blvd Suite 700 Irving, Texas 75039 972-501-1150 ekangbs@hmm21.com	1 (Witness sworn.) 2 SOPHIA HOPMAN, 3 having been first duly sworn, was examined and 4 testified as follows: 5 DIRECT EXAMINATION 6 BY MR. WILLIAMS: 7 Q. Good morning, Ms. Hopman. 8 A. Good morning. 9 Q. My name is Kevin Williams. I am the 10 attorney for -- representing MSRF in this case. 11 MR. WILLIAMS: (To the reporter) Do we 12 need to reintroduce ourselves for this today? 13 Okay. 14 BY MR. WILLIAMS: 15 Q. As I said, I'm the attorney for MSRF in 16 this case, which is MSRF, Inc. vs HMM Company 17 Limited, docket No. 22-20 before the Federal Maritime 18 Commission. So good morning. 19 A. Good morning. 20 Q. Have you ever been deposed before? 21 A. No. 22 Q. Okay. So a few ground rules here before 23 we get started. Our court reporter here is taking 24 down everything that we say. So to keep the record
Page 3	Page 5
1 2 INDEX 3 SOPHIA HOPMAN 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24	1 clear and avoid confusion, if you would just wait 2 until I finish a question before answering it so 3 we're not stepping on each other's toes. 4 And also, in that regard, give an 5 audible answer so that she can hear you and write it 6 down. Don't -- she can't record nods of the head or 7 shakes of the head or uh-huh or that sort of stuff. 8 A. Understood. 9 Q. If you don't understand a question, ask 10 me, okay? I'm not planning to ask any trick 11 questions today. If I do, they're inadvertent. 12 We're just here to try to flesh out some stuff on the 13 evidence, the documents that we have here. So if you 14 don't understand, just ask me to rephrase it, and 15 we'll do that. 16 A. Understood. 17 Q. Okay. As Neil said yesterday -- or Mr. 18 Quartaro said yesterday to the witnesses, this is a 19 strange question but we always ask it: Are you on 20 any medication or substances today that would affect 21 your memory or ability to answer my questions? 22 A. No. 23 Q. Okay. We can take a break if you need 24 one.

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Page 6	1 A. No, I'm good. 2 Q. Any time. The only thing if we do take a 3 break, you'll need to answer the question that's -- 4 any questions that are pending before we stop; but if 5 you need to take a bathroom break or anything, we can 6 do that. 7 A. No. 8 Q. So you're under oath. So you'll do your 9 best to answer the questions truthfully. You'll have 10 the opportunity to review the record after we're done 11 to correct any minor errors or anything; but if you 12 answer a question, we're going to assume that's your 13 recollection and that's accurate. 14 A. Okay. 15 Q. Okay. Would you please state your full 16 name for the record. 17 A. Sophia Therese Hopman. 18 Q. And Sophia is S-o-p-h-i-a? 19 A. Correct. 20 Q. And where do you reside? 21 A. In Westchester, Illinois. 22 Q. Your educational experience? 23 A. Associate's. 24 Q. Associate's degree from where?	Page 8	1 A. Inbound, correct, for HMM. Yes. 2 Q. And how long have you had that job? 3 A. 14 years. 4 Q. What are your job duties and 5 responsibilities? 6 A. Well, I oversee all the import contracts 7 and I support all the salespersons in the midwest 8 region to ensure that they meet their initiatives 9 with whatever the company's overall initiatives are 10 for inbound. 11 Q. Okay. And the -- when you say 12 "contracts," that would be service contracts like the 13 one that's at issue in this case? 14 A. Correct. 15 Q. We'll get to that in a little bit more. 16 How long have you been with HMM? 17 A. 14 years. 18 Q. And before that? 19 A. I was -- well, I took a three-year 20 sabbatical, and then I was with MOL for 15 years. 21 Q. And MOL is another ocean carrier? 22 A. Correct. Now, they're with ONE Alliance. 23 Q. And when you came to HMM, did you come in 24 with your current position or --
Page 7	1 A. Bryant & Stratton College. 2 Q. Where is that? 3 A. Well, it used to be in the -- what's the 4 market? 5 Q. The Merchandise Mart? 6 A. Merchandise Mart. And that was 1989, long 7 time ago. 8 Q. Is it still there? 9 A. No. Now they have it on the East Coast. 10 Q. What did you study? 11 A. Business. 12 Q. And you graduated in '89 you said? 13 A. Yes, yes. 14 Q. Do you have any professional certificates 15 or licenses or certificates as a customs broker's 16 license -- 17 A. No. 18 Q. -- or anything like that? 19 A. No. 20 Q. And so what is your current job title? 21 A. I am the midwest import sales manager. 22 Q. For? 23 A. The midwest region. 24 Q. For HMM?	Page 9	1 A. No. I initially came in as just sales, 2 outside sales; but due to my experience -- I was 3 sales manager at ONE -- they asked that I take the 4 import training management position, and then about 5 six months after I accepted the role. 6 Q. Okay. Have you -- first of all, let me 7 back up. Strike that one. 8 Did you talk to anyone to prepare for 9 the deposition this morning? 10 A. No. This morning, no. 11 Q. Or at any time before the deposition? 12 A. I mean I spoke with our counsel, but 13 that's -- 14 Q. That's it? 15 A. Mm-hmm. 16 MR. WILLIAMS: And the Complaint in this 17 case, can we mark that with a new -- as an 18 exhibit with a new one; we'll call these H? 19 MR. QUARTARO: Sounds goods. 20 (Hopman Deposition, Exhibit H1 was 21 marked for identification.) 22 BY MR. WILLIAMS: 23 Q. So have you reviewed this, the Complaint, 24 are you familiar with it?

3 (Pages 6 to 9)

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Page 10	1 A. A while back I did, not recent. 2 Q. And so the -- let's look at paragraph 24 3 which says: "MSRF and respondent entered into a 4 written service contract (SC US2124083)." Are you 5 familiar with that service contract? 6 A. Correct, yes. 7 MR. WILLIAMS: So this will be H2 the 8 service contract. 9 (Hopman Deposition, Exhibit H2 was 10 marked for identification.) 11 BY MR. WILLIAMS: 12 Q. So you see at the top of this it says 13 Service Contract No. US2124083, and then it's 14 indicating amendment 000 with an effective date 2021? 15 A. May 1st. 16 Q. May 1st, 2021. And it's between MSRF and 17 HMM Company Limited. And you're familiar with this 18 contract? 19 A. Correct. 20 Q. Okay. Go to page 2, please, paragraph 4, 21 Minimum Quantity Commitment. That indicates that -- 22 what does that indicate? 23 A. That's the volume that they committed to 24 move, ■ Fs total. Out of the ■ Fs total, ■ should	Page 12	1 there it's more manual so it takes much longer to 2 unload vessels, so -- 3 Q. And that's on the U.S. side? 4 A. It's on the U.S. side, vessels coming 5 inbound. 6 Q. Were there issues also on the Asia side? 7 A. Well, of course. There's issues as far as 8 we couldn't get vessels turned around quick enough so 9 we don't have an infinite amount of vessels. We need 10 those vessels that headed out to the U.S. to turn 11 around, make a loop, and head back so we can reload; 12 but with vessels sitting in the water, that delays. 13 Q. And you said you weren't directly involved 14 in these negotiations with MSRF? 15 A. Not on a day to day, correct. 16 Q. Are you familiar with MSRF and its 17 business or -- 18 A. Yes, yes. Somewhat, yes. 19 Q. What is HMM's relationship with MSRF? 20 A. We had a contract with them. We were 21 their shipper, their carrier. 22 Q. Right. Okay. I have a packet here of 23 emails. 24 MR. WILLIAMS: I have a packet of emails.
Page 11	1 have been westbound, that's export. ■ FEU is 2 import. 3 Q. Right, okay. So we can set that aside for 4 a moment. Were you involved in the negotiation of 5 this service contract with MSRF? 6 A. No. I mean I was the manager there, but 7 our sales rep was doing most of the negotiations with 8 our pricing group. So I do oversee if there's issues 9 or problems, but I'm not with the day to day. 10 Q. Okay. Can you describe what was going on 11 in the shipping industry in early 2021 with the 12 pandemic and all the issues that were going on? 13 A. Sure. It was major congestion at the 14 ports. Space capacity was tight. Vessels were 15 sitting out in the water, sometimes over 100 vessels 16 for over 60 days because they could not berth fast 17 enough; and the personnel at the longshoreman, at the 18 ports, they just could not unload the vessels fast 19 enough. 20 The U.S. does not have the proper 21 infrastructure to quickly unload the vessels, say 22 like in Europe, in Asia, Hong Kong where they can 23 expeditiously unload vessels. In the U.S., 24 unfortunately, due to the longshoreman and the unions	Page 13	1 Let's call that H3. 2 (Hopman Deposition, Exhibit H3 was 3 marked for identification.) 4 BY MR. WILLIAMS: 5 Q. So these are a series of various emails 6 that came. Some of them are between Mr. McDonald and 7 MSRF, between Mr. McDonald and you, and other people 8 within HMM -- 9 A. Okay. 10 Q. -- related to various issues. And I 11 apologize that I put them all together in one 12 exhibit. I was having printer trouble last night 13 after everybody had gone home, so I had to make due. 14 So they are in numerical order, okay. 15 So you'll notice at the bottom of each 16 page there's a number HMM 364, et cetera. Those are 17 Bates numbers, we call them in the legal industry. 18 We use those to identify documents when we produce 19 them to other people in litigation. So I'll be 20 referring to those. 21 So if we go to HMM 911, which is about 22 a third of the way through this packet. So you'll 23 see an email -- the email there that you are copied 24 on from Karen Hurh to Chris McDonald and to you

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Page 14	1 talking about the minimum quantity commitment in this 2 contract. Do you see that? 3 A. Correct, yes. 4 Q. Okay. Is [REDACTED] FEU -- you understand -- it's 5 a silly question. You understand what an FEU is, 6 right? 7 A. Correct. 8 Q. Is a [REDACTED] minimum quantity commitment 9 typical for service contracts? 10 A. Well, I mean it can be. We have many that 11 are [REDACTED] FEUs. 12 Q. Okay. 13 A. And, again, depending on the customer, 14 their volume as well, if they do not have a lot of 15 volume to move; but generally [REDACTED] F is a minimum that 16 we secure to at least try to open the door for the 17 customer. 18 Q. Okay. Had MSRF been a customer of HMM 19 prior to this service contract? 20 A. About six years prior. 21 Q. Okay. So let's go back further forward to 22 the front of this to HMM 626. 23 A. Got it. 24 Q. There's an email from you to Chris	Page 16	1 support them at all there. Because if there's no 2 space available, and booking is already booked out 3 two months in advance, it would be impossible for us 4 to try to get MSRF on. 5 Q. This was an email in June, June 15th, 6 right? 7 A. Correct. 8 Q. And how did their -- the expiration of 9 their service contract in July, how did that factor 10 into your response? 11 A. Because if they tried to book and they get 12 delayed -- because, again, all the vessels were 13 sitting out in the water for sometimes over 60 days. 14 So even if they have a booking, they put it in June. 15 If that vessel does not rotate in, by the time let's 16 say a vessel did come in and there was availability, 17 their contract could be expired already, and then it 18 wouldn't be valid. So they cannot get on a vessel if 19 their contract is not valid. 20 And we just knew from the history and 21 what we were seeing that vessels were just stuck out 22 in the water for so long, and especially with Houston 23 having such a small allocation, it was very difficult 24 to get space at all out of Houston. So it was more
Page 15	1 McDonald. Can you read that to me? 2 A. Sure. It says: "Hi Chris. They have met 3 their MQC, right? If so, I would run this by Jin if 4 we even want to support at all. Their service 5 contract expires in July, right?" 6 Q. And what was that email in response to? 7 You can see that on the next page. 8 A. On the next page? 9 Q. Yeah, on the next page. These are the 10 strings -- I'm sorry. On page 627, so one further. 11 A. (Witness examines document.) 12 Okay. So they were looking for a 13 booking to Houston. Okay. 14 Q. And according to Mr. McDonald this booking 15 had been declined, right? 16 A. Correct. 17 Q. And your suggestion was that there wasn't 18 really -- what were you suggesting in your response 19 to that? 20 A. Well, they were trying to get to Houston; 21 and Houston, our allocation is very small. So we're 22 in an alliance, and we're only allocated very small 23 capacity going to Houston. So I basically advised 24 Chris to go speak with our trade, if we couldn't even	Page 17	1 concern for the customer not to have a booking 2 pending, and they could not get on; and then by the 3 time maybe a vessel, you know, was available, we were 4 into the end of July or August. 5 Q. All right, understood. Thank you. Let's 6 go back to the service contract, and go to page 7 of 7 the contract, which is also identified as HMM 13. 8 A. Okay. 9 Q. And then paragraph 8, what is that? 10 A. The duration. 11 Q. And those dates are? 12 A. The commencement May 1st through April 13 30th. 14 Q. So the original contract as negotiated, 15 that was the term of the original contract? 16 A. Correct. 17 Q. There were a series of amendments to this 18 contract? 19 A. I'm sure. I just don't know how many 20 there were. 21 Q. Yeah, there were 14. I'll represent to 22 you that that's the case. We went through this 23 yesterday. So amendment 12, see if we can find that 24 one, if anybody gets there before me. Here it is

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Page 18 1 right here. HMM 171. 2 A. Okay. 3 Q. Paragraph 4, what is going on there? 4 A. So it looks like it was amended to FEU, 5 the volume that was moved for that duration. 6 Q. Okay. And what do you call that when you 7 reduce the MQC at the end of the contract term? Is 8 there an industry term for that? 9 A. No, we just amend it to the volume moved. 10 Q. Okay. You amend it to the volume moved, 11 okay. And what's the purpose of amending the 12 contract to the volume moved? 13 A. Well, it just shows then that the contract 14 was satisfied by both parties. So generally the 15 importer generally does not want to have a contract 16 out there pending showing, let's say, that they did 17 not meet their commitment; and then we in turn -- 18 generally they'll ask us to always amend a contract 19 at the end of the term to what was moved if they fell 20 short. 21 They don't want to leave anything open 22 showing as if they did not meet their commitment 23 because there are like liquidated damages the carrier 24 could impose based on the verbiage, but generally	Page 20 1 opening up; and our headquarters, they were open to 2 obviously looking at customers that needed more 3 support that couldn't, you know, meet their MQC 4 because of all the capacity issues with the vessels 5 in the water. So we looked at customers that maybe 6 could utilize -- didn't meet their MQC and that we 7 could possibly support. 8 So MSRF was one that we saw initially 9 moved only FEU. So we suggested that we have a 10 conversation with them, if they still needed support, 11 and then we would be open to extend it to give them 12 an opportunity to essentially meet their initial MQC. 13 Q. Okay. So flip back to HMM 181, which is 14 page 7 of this amendment. And it's paragraph 8, 15 Duration, and then flip to the next page which has 16 the -- what is that showing? 17 A. May 1st through July 8th, 2022. 18 Q. Okay. So the original term of this 19 contract that we just discussed was expired on April 20 30th -- 21 A. Correct. 22 Q. -- 2022. So this amendment 13, in 23 addition to increasing the MQC again, it extended the 24 contract May 1st through July?
Page 19 1 carriers they will amend based on the volume moved. 2 Close out the contract, you know. It's a clean 3 close-out. 4 Q. Do you recall if MSRF initiated this 5 closing out of the contract, or was that initiated by 6 HMM? 7 A. I'm not sure. I would say it would be 8 most likely HMM, but I cannot confirm that. 9 Q. Would Mr. McDonald know that? 10 A. Yes. 11 Q. We'll ask him that this afternoon then. 12 So after the contract was closed out, 13 it was again amended -- okay, page 176. This is 14 amendment 13. What was amended there? Look at 15 paragraph 4 again. 16 A. It says minimum quantity, FEU. 17 Q. Okay. So the contract was closed out with 18 FEU. And then on April 29th it was amended again 19 shortly before the expiration of the term to 20 include -- to increase the quantity from FEU back to 21 FEU? 22 A. Mm-hmm. 23 Q. Why was that done? 24 A. I believe that was -- we were -- space was	Page 21 1 A. Yes. 2 Q. Is that common to extend contracts like 3 this? 4 A. Yes. We do offer customers and we've been 5 offering customers, when they're not able to meet 6 their MQC, we offer to extend a contract to give them 7 opportunities to meet their MQC. 8 Q. And is that done at the original -- 9 usually is that done at the original prices? 10 A. Is it done at the original -- oh, yes, if 11 they're trying to meet their MQC. I mean we have in 12 the past, yes, extended contracts per their -- you 13 know, what was in their contract, yes. 14 Q. Can you explain to me once you have a 15 service contract in place, what's the process for the 16 customer to book shipments under the service 17 contract? 18 A. Well, generally we ask that they provide 19 us forecasting, especially after 2020 when COVID hit 20 and the capacity and vessels again sitting out in the 21 water. We requested all customers, even the smaller 22 ones, to provide us forecasting. Because obviously 23 people were booking six to eight weeks out; and for 24 us to plan efficiently, we needed to know in advance

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1 when they would potentially have a booking so we 2 could ensure if there was a vessel for that 3 particular week, we could secure them space. 4 Because, again, it was just very difficult with not 5 knowing the rotation when the vessels would be able 6 to unload in the U.S. and turn around again for 7 another rotation back. 8 Q. Okay. 9 A. So schedules were just all over the place. 10 Q. And did MSRF provide you with a forecast? 11 A. To the best of my knowledge I believe once 12 throughout the entire contract. Other than that they 13 were not able to provide us forecasting, and they 14 were repeatedly asked. 15 Q. Okay. I think we're done with the service 16 contract. 17 MR. WILLIAMS: Mark that H4. 18 (Hopman Deposition, Exhibit H4 was 19 marked for identification.) 20 MR. WILLIAMS: This H4 is confidential. 21 Let's get out M7 and R4 and make that H5. 22 (Hopman Deposition, Exhibit H5 was 23 marked for identification.) 24 BY MR. WILLIAMS:	1 Given all the shortages, et cetera, that were going 2 on in the industry, why were you able to give them 3 six during September but only one in June and one in 4 July, none in August? 5 A. Okay. As I advised, space started to 6 lighten up, so that's why we actually offered the 7 extension of the contract for MSRF to try to support 8 them, and it was based on when we had availability. 9 Q. This was the original contract period, 10 September 21. 11 A. Oh, okay. Well, again, if they had 12 forecasting or they booked in advance, then our 13 overseas would be able to accommodate. I can't speak 14 other than that. 15 Q. So let's go back to the emails, which is 16 3, and go to page 626. 17 A. 626? 18 Q. I'm sorry. Let's go to 631. I'm sorry. 19 MR. QUARTARO: 631. 20 THE WITNESS: I go 615 and then ... 631, 21 got it. Sorry about that. Okay. 631. 22 BY MR. WILLIAMS: 23 Q. Okay. So that's just more emails about 24 the finalization of the service contract with their
Page 23	Page 25
1 Q. So this Exhibit H5 is a -- that just has 2 two tags on it, right? Oh, no, there's three, one at 3 the top. Okay, we're good. 4 Go to the second page of that, and the 5 second column shows the On Board Date. Are you 6 familiar with this document? Have you seen it 7 before? 8 A. Not this particular document, but I know 9 what the onboarding is. 10 Q. Okay. So this was prepared by HMM and 11 given to us. It shows all of the shipments that HMM 12 handled for MSRF during the contract period. 13 A. Okay. 14 Q. If you look at the first nine of these, 15 they were in -- is it correct that those were in the 16 original contract period? 17 A. Correct, based on the day. 18 Q. May through April, okay. And then you'll 19 see that there were -- six of these occurred in 20 September? 21 A. Okay, yes. 22 Q. One in June and one in July. 23 A. Okay. 24 Q. Okay. So why were you able to handle six?	1 approving them for credit, et cetera; is that 2 correct? 3 A. Correct. 4 Q. So go a few pages back to 910? 5 A. Okay, 910. 6 Q. So who is Karen Hurh? 7 A. She was our pricing analyst in our 8 headquarters. 9 Q. Okay. And this is an email from Chris 10 McDonald to her related to the negotiation of the 11 service contract, and what is he relating to Karen in 12 that email? 13 A. That MSRF has advised the following: 14 Heavy import lane, mid-July to October, destination: 15 Alsip and export destination: Qingdao, whole year 16 contract, Kolkata, India. 17 Q. Would that be an example of a forecast? 18 A. No. This is what they're saying they 19 anticipate, not an official forecast. 20 Q. So let's go back a bit further in this 21 package to 26465. 22 A. Okay. 23 Q. And this is an email from Daniel Wang. 24 Who is Mr. Wang?

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Page 26 1 A. So he is a salesperson in our Qingdao 2 office. 3 Q. And you were -- were you copied -- 4 A. I'm not on copy. 5 Q. You're not on copy on this email. 6 A. No. 7 Q. Okay. But let me ask you: Is this -- let 8 me rephrase. 9 It appears in this email that MSRF is 10 asking for space allocation; is that correct? 11 A. It looks like it. 12 Q. Okay. And when it says they do not 13 have -- "MSRF does not have space allocation on PS6 14 but on PN only," what does that mean? 15 A. That means routinely they've been moving 16 on the PN string, our Pacific Northwest. So that's 17 where HMM was having allocation for them, and they 18 now were trying to get space on a different string. 19 Q. What is a string? 20 A. That's the rotation. So we have six 21 routes. 22 Q. Okay. 23 A. And PS means the Pacific Southwest, PN to 24 the Pacific Northwest.	Page 28 1 emails, I think it would probably be better if I just 2 ask Chris about those this afternoon, the thrust of 3 the questions here are -- the -- let me ask this: 4 How do they decide overseas? How do they decide how 5 to -- when space is short, how do they decide who 6 gets what? 7 A. So -- 8 Q. So, for example, why would an NVO in this 9 situation get -- why would MSRF be able to get space 10 on HMM vessels through an NVO but not be able to get 11 it directly through HMM with its -- under its service 12 contract? 13 A. Okay. So HMM has a model. Every year 14 since I've been here and really in the industry, 15 every carrier allocates volume for direct PCOs, which 16 is an MSRF and a portion to the NVOs. So a 17 particular NVO, they could have allocation; and what 18 they do, they can just have bookings out in advance 19 to secure the space, and then they could give it to 20 any importer that comes to them. So that's why they 21 could have had the space because they've had an 22 allocation, and they just book in advance because the 23 NVOs were very sharp. They knew that they had to 24 have bookings well in advance, and they could
Page 27 1 Q. So that would be to -- 2 A. Like going in via the PN, going to 3 Seattle, Tacoma; and the PS would be like LA. 4 Q. Okay. Understood. Thank you. 5 And if you go to the previous page, 6 this is HMM 26450, there is a question that Rochi 7 Marisol from MSRF is asking. It says that: "How is 8 it that our shipper in Qingdao has six bookings for 9 three to six containers each booking and got all the 10 booking confirmed from our NVO? Some of the 11 containers are booked with Hyundai," which is HMM. 12 "So tell me why we can't get anything under our 13 service contract? Not even one." 14 And then on the previous page, 26449, 15 who is -- let me ask you this: Who is Laura 16 Trometer? 17 A. She is Chris McDonald's inside sales 18 support, so like an inside assistant. 19 Q. Okay. And does Chris McDonald report to 20 you? 21 A. Correct, myself, and on the import side 22 and on the westbound side there is another sales 23 manager. 24 Q. And since you aren't copied on these	Page 29 1 essentially take bookings from any importer. So as 2 long as they have that space booked, slotted, a 3 customer comes to them, then they could say, sure, I 4 have this one with HMM. 5 Q. Okay. Let's go to Exhibit H4, which looks 6 like this, and on the second -- these are examples of 7 five shipments that MSRF had that were carried on HMM 8 vessels but were booked through a freight forwarder. 9 So go to the second page of this exhibit. I'll 10 represent to you this is an arrival notice issued by 11 Pegasus Maritime. Do you know who Pegasus Maritime 12 is? 13 A. It's an NVO, yes. 14 Q. Do you know if Pegasus had a service 15 contract with HMM during this period? 16 A. I was not aware at the time, but I can see 17 from looking at this. 18 MR. WILLIAMS: I have nothing further at 19 this point for you. It was short. I apologize 20 if you were expecting to devote most of your day 21 to this, but I'll hand it over to my colleague 22 here if he has any questions. 23 24

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1 CROSS EXAMINATION 2 BY MR. QUARTARO: 3 Q. Just one. Ms. Hopman, if you could turn 4 to the exhibit market H3, and if you could go to the 5 page HMM 626. 6 A. Okay. 7 Q. Referring to 626 and the page immediately 8 before it, 627, this seems to concern a shipment from 9 Asia to Houston, and I'd like you just to tell us 10 what the date of your email at the top of 626 is. 11 What's the date of that? 12 A. June 15th, 2022. 13 Q. Okay. And can you please return to the 14 Exhibit marked H2, the service contract. And can you 15 please go down to the 14th amendment, which I believe 16 is going to be HMM 188. And if you look at the top 17 of that document, there is an effective date. What 18 is that effective date? 19 A. June 16th, 2022. 20 Q. So that's the day after this email? 21 A. Yes. 22 Q. And can you please go in that amendment to 23 HMM 191. 24 A. Okay.	1 demand time, and it's a normal charge that is applied 2 in the contract when carriers and customers come to 3 agreement. 4 Q. If the contract includes a peak season 5 surcharge, does that give the shipper priority on 6 allocation? 7 A. A peak season does not guarantee space. 8 There's no guarantee for space with a peak season 9 surcharge. 10 MR. WILLIAMS: Okay. Thank you. I have 11 nothing further. 12 THE REPORTER: Signature? 13 MR. QUARTARO: We'll do the same for -- I 14 think we probably each will want it the same for 15 all of the depositions, right? We want them all 16 signature, normal thing, 30 days. We'll swap 17 them out. 18 I'll probably want -- I'll definitely want 19 a minuscule because I love the four pages on 20 one. And then I'll need a regular one. I think 21 that's it. I don't think we need them 22 particularly quick, but what are you thinking 23 for -- I don't need -- I'm fine without a rough. 24 You can just send me when you're ready.
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1 Q. Can you tell us if there are any 2 amendments that you see on that page? 3 A. No. No. 4 Q. If I was to tell you that amendments would 5 be marked with an -- would be underlined and this is 6 a colored copy in blue, could you reexamine the page, 7 please. 8 A. Qingdao here to Houston. Sorry. 9 Q. Does that refresh your recollection as to 10 whether or not HMM did offer a Houston service to 11 MSRF? 12 A. If they put the rate in there, then there 13 would have been an option to utilize the service, 14 yes. Otherwise we would not have even provided a 15 rate. 16 MR. QUARTARO: Okay. Thank you very much. 17 That's the only question that I have. 18 MR. WILLIAMS: I have one follow-up if I 19 may. 20 REDIRECT EXAMINATION 21 BY MR. WILLIAMS: 22 Q. What is a peak season surcharge? 23 A. A peak season surcharge is a charge that 24 carriers every year charge during high volume/high	1 THE REPORTER: Ten days? 2 MR. QUARTARO: Yeah, I'm fine with that. 3 THE REPORTER: So you don't need an 4 Etranscript. You want paper transcripts? 5 MR. QUARTARO: You should send an 6 Etranscript too. It's easy to search with. 7 (Whereupon the deposition 8 concluded at 10:17 a.m.) 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24

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Page 34 1 BEFORE THE 2 FEDERAL MARITIME COMMISSION 3 MSRF, Inc., 4 Complainant, 5 vs. Docket No. 22-20 6 HMM Company Limited, 7 Respondent. 8 _____ 9 10 I, SOPHIA HOPMAN, being first administered 11 an oath, say that I am the deponent in the aforesaid 12 deposition taken on March 3, 2023; that I have read 13 the foregoing transcript of my deposition, and affix 14 my signature to same. 15 16 _____ 17 Sophia Hopman 18 Subscribed and sworn to 19 before me this _____ day 20 of _____, 2023. 21 _____ 22 Notary Public 23 24	Page 36 1 I FURTHER CERTIFY that my certificate 2 annexed hereto applies to the original and typed 3 transcripts only, signed and certified transcripts 4 only. I assume no responsibility for the accuracy of 5 any reproduced copies not made under my control or 6 direction. 7 IN WITNESS WHEREOF, I have hereunto 8 set my hand this 16th day of March, 2023. 9 10 _____ 11 Joanne M. Gagliardi 12 Certified Shorthand Reporter 13 Registered Professional Reporter 14 C.S.R. No. 084-002466 15 16 17 18 19 20 21 22 23 24
Page 35 1 STATE OF ILLINOIS) 2)SS. 3 COUNTY OF COOK) 4 5 I, JOANNE M. GAGLIARDI, CSR, RPR, do 6 hereby certify that SOPHIA HOPMAN, was by me first 7 duly sworn to testify to the truth, the whole truth, 8 and nothing but the truth, and that the above 9 deposition was recorded stenographically by me and 10 reduced to computer-aided transcription by me. 11 I FURTHER CERTIFY that the foregoing 12 transcript of the said deposition is a true, correct, 13 and complete transcript of the testimony given by the 14 said witness at the time and place specified 15 hereinbefore. 16 I FURTHER CERTIFY that I am not a 17 relative or employee or attorney or counsel of any of 18 the parties, nor a relative or employee of such 19 attorney or counsel, or financially interested 20 directly or indirectly in this action. 21 22 23 24	

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